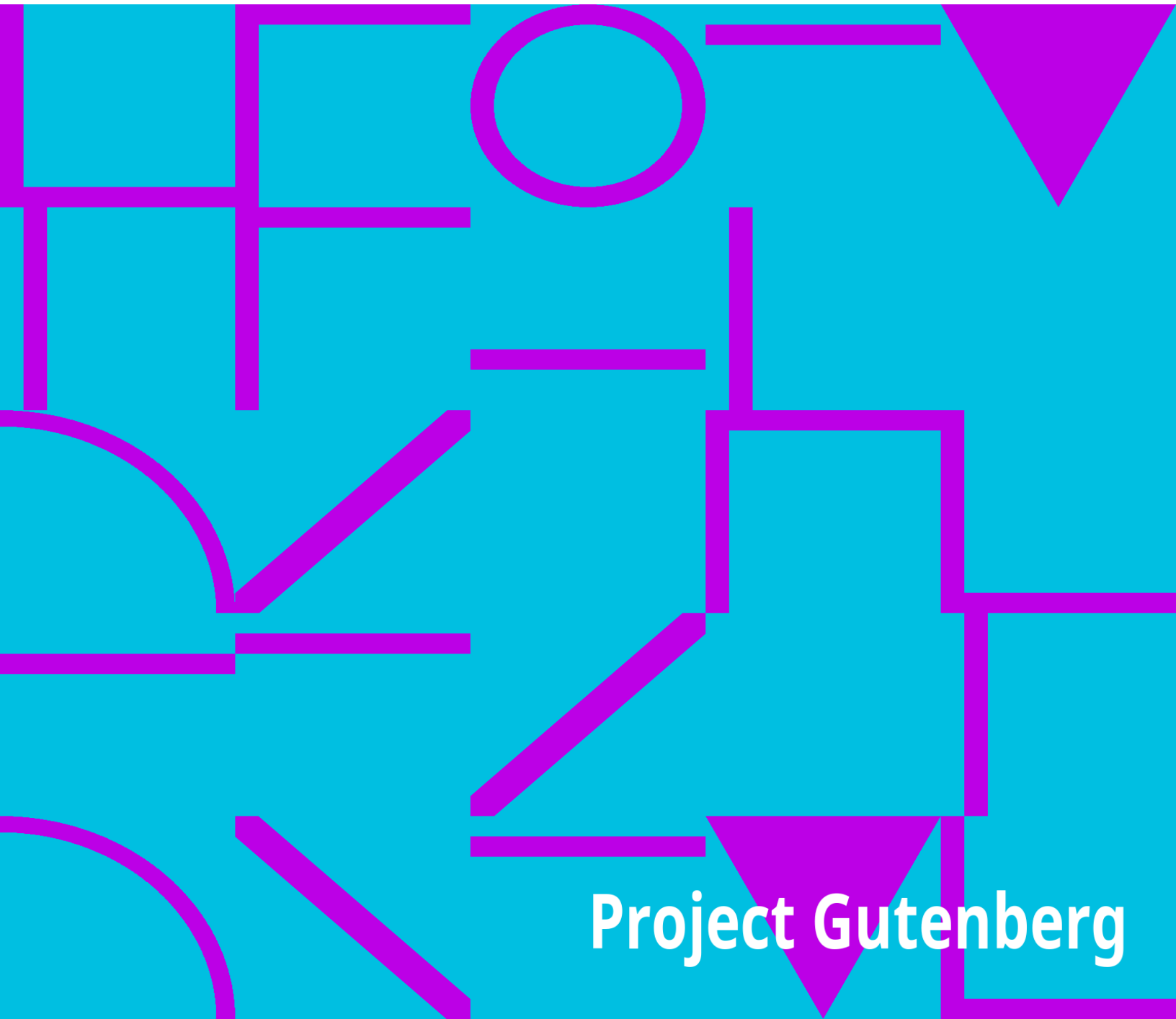


Lowestoft in olden times

Francis Davy Longe



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Lowestoft In Olden Times.



PREFACE.

THE following pages contain lectures read before the members of St. Margaret's Institute, at Lowestoft, with additions introduced to render the story somewhat more complete.

Lowestoft of the present day, with its harbour, its magnificent fishing fleet, and its fine marine terraces, is the product of the nineteenth century. But the Present is linked with the Past by the retention of the old Town on the Cliff as the nucleus of the greatly enlarged modern town.

The rise of Lowestoft was so much connected with the fortunes of Yarmouth that it would be impossible to tell the story of old Lowestoft without introducing a good deal that belongs to the history of old Yarmouth. Indeed, were it not for the records which have been preserved of the contests between the two towns about the Herring Trade, the materials for a history of Lowestoft would be almost nil. The history of Yarmouth is only introduced into this sketch so far as it is incidental to that of Lowestoft. But I feel that apologies are due to the larger and more ancient town for the partial manner in which its history is dealt with.

The materials from which these lectures have been compiled are furnished by Domesday Book, the Lay Subsidy Rolls, the Parish Register, and the ancient documents contained in Swinden's History of Yarmouth, and Gillingwater's History of Lowestoft. Other historical details of interest have been taken from those valuable old works, and from Nall's History of Yarmouth and Suckling's History of Suffolk.

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LECTURE I.

PART I.—INTRODUCTORY, GEOLOGICAL.—THE WAVENEY.—THE SILTING UP OF THE ESTUARY.—BURGH CASTLE.

PART II.—DOMESDAY BOOK.—THE PARISHES OF LOTHINGLAND.—LOWESTOFT IN DOMESDAY.—NEIGHBOURING PARISHES.—HERRING RENTS.—LIVE STOCK ON THE FARMS.—CONDITION OF THE PEOPLE IN SAXON TIMES.—SERFDOM.—CRAFTSMEN.—THE MERCHANT.

PART I.—INTRODUCTORY—GEOLOGICAL.

You will think that I am going unnecessarily far back in commencing my sketch with a reference to that very remote period

“When Britain first at Heaven’s command
Arose from out the azure main.”

But if a thousand years or so would take in the origin of both Lowestoft and Yarmouth, questions have arisen affecting the relations of these towns which involve a much more extended retrospect.

It has long been a tenet of Lowestoft people that Lowestoft is a more ancient town than Yarmouth. In some of the numerous petitions presented to Parliament in connection with the disputes between the two towns about the Herring Trade, her greater antiquity was put forward by Lowestoft as giving her a prior claim to the herrings which visit the seas off this coast.

There is a story that the learned Potter, the translator of Æschylus, when vicar of the parish (about 1780) received a letter from the Archbishop of Canterbury addressed to him at “Lowestoft near Yarmouth.” The vicar was indignant at what he regarded as a slight on his town, and when replying to the Archbishop, added this postscript “My Lord, when you direct to me

again be pleased to write simply Lowestoft—Lowestoft does not want Yarmouth for a direction post, for Lowestoft was ere Yarmouth rose out of the azure main.”

Again, the question whether the Waveney ever flowed out at Lowestoft was a matter of warm discussion some 60 or 70 years ago, when the project of making a connection between that river and the sea, and providing Lowestoft with a harbour (an undertaking since so successfully carried out) was first mooted. The belief that the Waveney did once run out here, was supposed to give much sanction to a project which would only restore to the town an advantage which nature had originally given her.

These questions have been touched upon by writers on the antiquities of our neighbourhood, but not in a very satisfactory way. The tradition that the Waveney, or a branch of it, used to enter the sea at Lowestoft, has been reproduced by several writers as part of a picture which represents Norwich and Beccles, and other places on the borders of our marshlands, as ports and fishing towns on the shore of a large inland sea or estuary over which ships sailed freely, and to which herrings innumerable used to pay their autumnal visit which they now confine to the sea outside. That the sea at some time flowed over at least a great part of this area is probably quite true. No tradition would be required to satisfy the most ordinary observer that such a condition of things might have once existed, nor would anything more be needed to give rise to such a tradition. The question is when did this condition of the surface exist, and when did it cease to exist.

We will take as our guide to the solution of this problem a very interesting pamphlet by the late Mr. Edwards, the engineer employed in cutting out the channel for our harbour in 1829, entitled “The River Waveney—did it ever reach the sea via Lowestoft?”

He thus commences his account of the physical history of the Waveney Valley—

“First and in order of date, what can be gleaned from Geological evidence? It is universally admitted that the last great change of the surface of the earth, by whatever cause brought about, left the surface of the uplands very much in the same form in which we now find them.” p. 6.

Mr. Edwards refrains from expressing any view as to the causes which brought about this last great change. He was probably not familiar with the explanation with which recent geological science has furnished us. If you refer to any of the more recent treatises on the geology of Great Britain, you will find somewhere in the later chapters an account of the subsidence and elevation of these islands during what is called the Glacial Period—movements due to what may be generally described as the settlement of the earth's crust. ^[3]

In no part of England is there more striking evidence of this movement than in the coast district of Norfolk and Suffolk. The old land surface which went down and was re-elevated nearly to its former level, is well known in these parts as the Forest Bed, which now forms the bottom of the sea at a short distance from the shore from Cromer to Kessingland. It appears as the lowest stratum of the cliff at Kessingland, and at other places on our coast. It is also disclosed in inland pits from which some of its most marvellous relics have been extracted. That the surface of this bed was once above water and covered with terrestrial vegetation, like that on which we now have our being, is proved by the stumps of trees which have been found fixed upright in it, as they were when alive and growing. A specimen of these old tree stumps is to be seen in the Norwich Museum. It is on this old land surface and more or less embedded in it, that the relics of an older world are buried, which so frequently make their appearance in the trawl nets of our fishermen,—the teeth and bones of Elephants, the Rhinoceros, Hippopotamus, and other animals, which now belong to the fauna of countries far away to the south. This old land surface has been covered with some hundred or more feet of sand, clay, and gravel deposited upon it during the process of subsidence, and which after the re-elevation of the Island formed the surface soil of a great part of Suffolk and Norfolk.

The process of subsidence and re-elevation was probably extremely slow, producing an alteration of about two feet in a hundred years. An elevatory movement of this kind has been known to have taken place in recent times in the northern regions, and is said to be still going on in Finland.

How many thousands of years ago this movement took place is a matter for geologists to discuss, the important point that we have to bear in mind is that from the time this movement ceased all the alterations which have

taken place are due to causes still in operation and acting in the same manner now as then.

What was done by the sea in carving out the surface into hill and valley during the process of elevation we know not, but Mr. Edwards is probably right in holding that when the upward movement ceased the contour of the surface, as regards highlands and lowlands, hills and valleys, was very much what it is now.

In considering the effect of the natural forces still in operation during the many thousands of years during which they have been at work, it is necessary to bear in mind that the level of the sea has all along remained the same, except so far as it is varied by the rise and fall of the tide, and by the exceptional exaggerations of tidal movement caused by the wind.

The operations of nature which have brought about the filling up of the hollows in the glacial land have been (1) the flow of water from wide drainage areas in Norfolk and Suffolk carrying silt into the lower parts and depositing it there,—(2) the incessant action of the sea in building up a shore boundary against itself, and blocking up the gaps in the glacial highlands through which its waters would flow inland. This action of the sea on our eastern coast is due to the inexhaustible supply of sand and shingle which is being constantly pushed along the shore southwards by the tidal wave. How persistent is the action of the sea in blocking up every outlet, whether river or harbour mouth, which man would wish kept open, has been a matter of costly experience to Yarmouth for some 800 years, as it has been to the Great Eastern Railway Company during the short time that they have undertaken the task of keeping open the mouth of Lowestoft Harbour.

THE WAVENEY.

The ground formed by the deposit of alluvial soil from the interior, and the drifting inwards of sand and shingle from the sea is in some places not easily distinguishable from the old glacial ground on which it has been imposed. As regards land well above high water mark, no doubt can arise however similar the sand of which it is composed may be to the sand on our shores. Such deposits must have been formed before the land had risen to

its present level. But as regards deposits which are beneath or nearly on a level with high water mark, on the edge of what is now water or marsh-land, the difference in their origin may be difficult to ascertain and easily overlooked. The sand in our cliffs and on the shore is indeed the same:—the sea using the material which it has robbed from some projecting cliff, to fill up some bay or make an addition to the land to the southward. That the supposed ancient outlet between Lake Lothing and the sea was blocked up by sand and shingle in the same way as other outlets along the coast, was a very reasonable supposition, until the cutting of the channel for the new harbour disclosed a ridge of old glacial soil between the head of the lake and the sea, extending across the dip between Lowestoft and Kirkley, which proved that no deep river had ever flowed out there. This ridge was excavated to a depth of 30 feet below high water mark. “It consisted” Mr. Edwards tells us “not of horizontal stratified sand and shingle, as was found on the beach, but of precisely such strata of sand, as that of the rising ground on either side of the valley, the like of which may now be seen on Pope’s Farm.”

Although this ridge was too high to admit of a deep river running into the sea from Lake Lothing, it was not so high as to prevent a shallow overflow from the lake on to the beach, producing a small channel, between the lake and the sea. Evidence of the existence of such a channel in remote times has been preserved by its having been adopted as a boundary between the parishes of Lowestoft and Kirkley. It appears from an old enclosure map, that the boundary at this part had varied, as the channel shifted from north to south, until it reached the rising ground of Kirkley Cliff, where it formed the line of the existing boundary.

Tradition assigns to this part the name of Kirkley “Haven;” and the fact that the Roads along the coast from Pakefield to Yarmouth had in very remote times acquired the name of “Kirklee Road” is proof that Kirkley must have been known to sailors more than the other villages on the cliffs. It is probable that the low coast, and its proximity to the Roads, to which ships resorted for anchorage in remote times as in recent years, led to it being used by sailors as a convenient place for communication with the shore; which would be quite sufficient to give it the name of “Kirkley Haven,” whether any use was or was not made of the little channel in question as a waterway for boats or other light craft.

After the fens had been reclaimed, and converted into pasture lands, it became necessary to protect them from the inundation of the extraordinary high tides which occurred occasionally in ancient times, as now, under the influence of a prolonged spell of north west wind. An embankment or “fortification” was erected along this ridge with the object of preventing any irruption of the sea though Lake Lothing into the interior. We have a full account of the measures taken in 1660 for the reparation of a former embankment in the same place. In Queen Elizabeth’s time Lake Lothing was purely a freshwater lake, and it was called “The Freshwater” by Lowestoft people. The ordinary outlet for the water was not towards the sea, but through Oulton “Fen” into the Waveney. Camden writing at this time describes Lake Lothing as—

“That long and spacious Lake Lothing, which beginning at the seaside empties itself into the river Yare.”

A similar ridge of glacial deposit extending between Oulton Broad and Lake Lothing, formed the foundation of the ancient and existing roadway which connects Lothingland with the mainland. This ridge placed another effectual bar to the outflow of the waters of the Waveney Valley in this direction, though here again there seems always to have been a small shallow dip, the old “Mud-ford,” through which the water on either side was connected. No such ridges blocked the wide mouth of the estuary at Yarmouth, which was open for the flow of water out and in until the sea had blocked it up with an accumulation of sand and shingle to the depth—Mr. Edwards says—of some hundred feet.

THE SILTING UP OF THE ESTUARY.

The natural process by which the valley of the Waveney became gradually filled up with silt, and covered with aquatic vegetation is carefully explained by Mr. Edwards. How many thousands of years the process was going on before nature had converted the wide and apparently deep estuary into an expanse of fen and bog, with the Waveney, the Yare, and the Bure, flowing through it in well defined channels we know not; but Mr. Edwards mentions an interesting fact showing that nature’s process of substituting land for water is still in progress. We know that some hundreds of years ago man took advantage of the work already done by nature, and converted

these fens and morasses into dry marshlands by raising banks along the river sides to keep out the flood and tidal waters. Between these banks and the river there are margins several yards in breadth called “rands” or “ronds.” These rands have been left open to the overflow of the river, and they are found to be raised from one to two feet above the level of the inclosed lands on the other side of the banks. Another process by which nature has been and is still slowly substituting land for water is the advance of the reedy margins of the broads and the gradual diminution of the water area.

BURGH CASTLE.

The first evidence we have of the stage which the silting up process had reached during the time of man’s occupation of these parts are the records and vestiges of the presence of the Romans on the banks of the Yare and the Waveney during the first four centuries of the present era.

In his account of Burgh Castle Mr. Suckling gives us a map shewing the different positions occupied by the Romans in these parts in connection with their system of coast defences against the Saxons, or other tribes on the opposite shores of the North Sea, whose piratical visitations were as much a cause of fear to the British inhabitants of our island as they were several hundred years later to its “Saxon” inhabitants themselves.

According to this map we have the strong fortress of Burgh Castle placed in the northern extremity of Lothingland, in such a position as to command a view of the entrance of the Yare and the Waveney from the estuary, the diminished area of which is still represented by Breydon water. A short way up the Yare we find another Roman Station at Reedham where the river approaches close to the glacial highlands, and where an invading force sailing up this river would find a convenient landing place at the river side, not separated from the river channel by a wide space of impassable morass, or shallows only navigable at high water. A few miles up the Waveney we have another Roman Station at Burgh St. Peter (or Wheatacre Burgh) at the extremity of a tongue of glacial highland, which is again closely approached by the present channel of the river. The extraordinary position of the church, at the lowest and extreme edge of a parish which contains a large area of high ground proves that this spot had some mysterious

importance in remote times, and the existence of Roman bricks in its walls, which may have been used in several successive buildings since they were made, points to the existence of some Roman fortress nearby to which they originally belonged; while the remains of human skeletons which have been found near the bank of the river buried in a promiscuous manner, as if the result of a battle on the river's edge, add support to the view that Burgh Staithe, being a convenient landing place for the invader, was a place of considerable importance in ancient times.

If the low marshland through which the Yare and the Waveney now wind their way to the sea was at the time when the Romans established their system of fortifications, a wilderness of bog and fen, impassable either by ship or on foot, we can understand the importance of these spots on the river-sides where the enemy could get from their boats on to the highlands of Norfolk and Suffolk. The conflict of opinion among antiquarians as to the true site of the Roman Garianonum has made the conditions of the area immediately beneath Burgh Castle in the Roman period, a familiar subject of discussion. Whether Burgh Castle or Caister was the Roman Garianonum, the disputants took it for granted that it was some place near the entrance of the river from which it took its name; but they appear to have overlooked the point that if there were any river channel near either Burgh or Caister which could be attributed to the Yare, the estuarine condition of the interior must have already passed away. When this inland area was an arm of the sea, as it has been so often described, the rivers which meet at Yarmouth must have lost their channels and their names several miles further west. The Yare would have terminated at Norwich or Reedham, the Waveney at Beccles, and the Bure somewhere about Wroxham. The Yare could have had no claim to give its name to any place near the present coast, either Burgh or Caister. The Orwell is still an arm of the sea and it is not called after either the Gipping or the Stour. The Romans probably named their fortress at Burgh from the Yare, rather than the Waveney because the river Yare was the common waterway from the Roman camp at Caister on the Taes to the sea.

The massive fortress of Burgh Castle could be safely held by a small force for a long time against any enemy who might succeed in effecting a landing on Lothingland itself, and if cavalry were kept there, as we are told they were, mounted messengers could be sent off as soon as a hostile fleet

appeared, who would be able to carry the intelligence to head quarters at Caister, via Oulton and Beccles or Bungay, before the enemy could get very far up either river.

The peculiar arrangement of the walls of Burgh Castle, which while they presented an impregnable defence on the North, East and South sides, left the west side with an easy slope down to the level of the river, unprotected, can only be explained by supposing with Camden and Spelman that the area between the river and the cliff, which is now marsh, was then an impassable morass, which offered an insuperable obstacle to the approach of a hostile force either by ship or on foot. [\[10\]](#)

The existence of Burgh Castle at the northern extremity of Lothingland is also strong evidence that the detached portion of the mainland was no more an island then than it is now. Such a fortress would be absurdly out of place to protect the country from an invader, if there was another open water-way at Lowestoft through which he could enter.

From these and the other considerations to which I have called your attention we may feel certain that the estuarine condition of the interior had ceased to exist as long ago as the Roman period, and that our marshland area was already in a condition of fen and bog, through which the Yare, and the Waveney, and the Bure flowed in their present channels to their joint outfall between Burgh and Caister, some thousand years before any historic Norwich or Beccles existed. The hill on which Lowestoft was destined to rise in after ages, was probably often visited by the Roman soldiers as they passed to and fro between their fortress at Burgh and their camp in the interior, but no relics have as yet been discovered bearing testimony to either Roman or British occupation of the site of our town, though Roman coins have been found at Kirkley, and Carlton and other places in our neighbourhood.

PART II.—DOMESDAY BOOK.

The most ancient record in which we find any mention of Lowestoft is Domesday Book. As this is the case with nearly every other town and parish in England, Lowestoft is not behind other places in evidence of antiquity.

But Lowestoft not only appears in Domesday as a parish and a village, but it appears as a Royal manor—or at least as one of the numerous estates or demesnes held by William the Conqueror, as his private property—as the successor of Edward the Confessor and Canute. On the strength of this archaeological distinction, the town in the time of Elizabeth and Charles I., claimed the privileges of lands in ‘ancient demesne.’ These privileges were that the town was excused from contributing to the expenses of the members of Parliament for the county, and its inhabitants were not to be called upon to go to Beccles or Bury as jurymen, but only to their own Manor Courts at Corton. The exercise of these privileges has, I understand, been abandoned for some time, and we have condescended to take part in the judicial and political system of the country like other places. What this ancient “demesne of the Crown” was we shall see presently. You have all, I doubt not, heard of Domesday Book, but you will be able to appreciate better the value and meaning of the information it gives us if I remind you shortly of its history.

In 1066 William won the Battle of Hastings, and on the strength of this victory claimed England as its conqueror, and not merely as the chosen successor of Edward. As conqueror of the country the whole of England was at his disposal, and he gave the lands of the Saxon (or according to Mr. Freeman and Mr. Green, ‘English’) proprietors to his French followers. They made full use of the King’s grant, and in a few years almost every Saxon landlord had disappeared, or if any remained, they remained as tenants of small portions of their estates to the ownership of which a Norman landlord had—as they called it—“succeeded.” We are told of one Norman Knight, who having fought for William at Hastings, refused to take any share in this wholesale robbery. He had done his duty as a vassal in fighting for William, and he preferred to return to Normandy and be contented with his own property there; not so though the rest.

You must understand that the great change brought about by the conquest was at first only a change of landlords, and involved no alteration in the laws and customs by which property was held. The parishes, the manors, the farms, the occupying tenants, and the labourers on the estates were not disturbed. Even the live and dead stock on the farms were all claimed by the new owners, and to a large extent actually got possession of by them.

After this process of ousting the Saxon landlords had been going on for some years—not, as you may suppose without a good deal of fighting and cruelty—the country was becoming settled, and the King thought it time to learn in whose possession its lands were, and what their estates were worth. So he appointed a commission of enquiry, to go through the whole country and report to him the names of all the possessors of estates, and what amount of land producing corn their estates contained, and what live and dead stock, including the tenants belonging to each estate, were on the land, and what each manor and estate was valued at. The results of this enquiry, which took some six years to complete, were put together by clerks, and written out in as concise a manner as possible on parchment—and so Domesday Book was formed.

As the commissioners had to ascertain so far as they could, what differences had taken place in the ownership and occupation of land, and in its condition and value, since the Conquest, Domesday Book, although made some 20 years after England was under the Normans, gives us a picture of the country as it was in later Saxon times, and it is from this book that most of our knowledge of the condition of England in the Saxon period is derived.

THE PARISHES OF LOTHINGLAND.

The map [\[13\]](#) represents the Hundred of Mutford and Lothingland (then called the two half hundreds of Mutford and Lothingland) as it is now divided into parishes. Nearly all these parishes are mentioned in Domesday under their present names (though of course not spelt precisely in the same way). Many, if not all, of them had probably existed under the same name, and with much the same boundaries some 300 years before, under the Saxon and Danish kings of East Anglia. They appear in Domesday as the known areas in which the estates reported upon were situated, but the parishes themselves were not the subject of the survey, nor does the term “parish” appear either in English or Latin. The word “Villa” is frequently used to denote these areas, just as “Town” was commonly used as an equivalent for “parish” in much later times. The book is written in a sort of Latinised English, but the names of places retain the vernacular form. As they are spelt very differently in different entries, Domesday is no authority for the correct spelling of any of our parish names. But the form they bear in

Domesday throws much light on their etymological origin. To what extent the estates mentioned in Domesday were contained in the parishes to which they are allocated is doubtful. In a few cases the several manors returned as being situated in a particular parish would appear to require a larger area than the parish now contains, but in nearly all cases the amount of land reported upon as being under tillage in a parish is very much less than the land now under cultivation.

In his history of the Norman Conquest Mr. Freeman says of Domesday: —“Domesday teaches better than any other witness of those times can teach us, that the England of the 11th century and the England of the 19th are one and the same thing.” We will now see what it teaches us about Lowestoft.

LOWESTOFT IN DOMESDAY BOOK.

In the return of the King's estates in the Half-hundred of Lothingland (Ludingland as it was written) we have a rather long account of the King's Manor of Gorleston, which appears to have been the headquarters from which the royal estates in Lothingland were administered for several hundred years. It states that “Gurth (Earl Gurth, the brother of Harold, killed at the battle of Hastings) held Gorleston in King Edward's time, and after giving the details of his property in Gorleston,

“There are 24 fishermen belonging to this manor at Gernemutha (Yarmouth) and a beruita (or subordinate manor) in Lothu Wistoft (Lowestoft). ^[14] It contains four carucates. In King Edward's time there were five villani (bond tenants of the upper class)—now only three. Both then and now there are ten cottage tenants. Then there were five servi (slaves), now only three. Then and now there are two ploughs employed on the demesne (the Kings own land). In Edward's time the tenants employed five ploughs on their land, now only three. There is woodland for eight pigs, and five acres of pasture. In King Edward's time there were thirteen geese, now only eight. There were then and now ten pigs, and 150 sheep.”

We have here the account of a small estate, comprising some 400 or 500 acres of cultivated land, of which part was in demesne, and cultivated for the King, and the rest was comprised in one or two large open fields, which were divided into allotments, and cultivated by the tenants for themselves, all of whom could have their little homesteads, and their shares in the plough-oxen, and other live stock kept on the land.

This estate had not passed from the hands of the Saxon Earl Gurth to those of William without disturbance. Three of the villani and two slaves had disappeared. They had, perhaps, been in Earl Gurth's army, and had fallen with him at Hastings. Several acres of land had fallen out of cultivation, and though the pigs and sheep had remained at the same number, the geese were reduced from thirteen to eight.

Besides the King's berwick there was a small manor in the parish called Aketorp, belonging to a freeman named Aylmar, a priest, probably the priest of the parish. His name tells us that he was an Englishman, and not one of the Conqueror's Frenchmen. His little property consisted of 80 acres, on which there were three cottage tenants. One plough was used on the demesne. There were seven other tenants who had land requiring half a plough. (They must have had other means of supporting themselves.) There was wood for five pigs, and one acre of pasture.

Priest Aylmar had not been disturbed by the Conquest, and his little property was in the same condition in 1085 as it was in 1066. The rest of the land in the parish would be common or waste land, over which the cattle, sheep, and pigs of the lords and their tenants could roam and feed.

So far as Domesday furnishes us with express authority, the population of the parish in Edward's time consisted of 31 different families. But I think that there may have been a few others—poor freemen—not belonging to these estates, and not coming within the scope of the survey, who gained a living partly by assisting the tenants in their agricultural work, and partly as fishermen, having their boats on the shore or at Kirkley Haven, which was quite alive at this time. These men would be the earliest representatives of the free population of the parish which was destined in after times, when trade had sprung up, to form the main population of the town of Lowestoft.

The church is not mentioned, but, as there was a resident priest, there can be no reason to doubt that there was a parish church—probably a small wooden building on the site of the present church. Churches were more numerous in Suffolk and Norfolk in Saxon times than in any other part of England. Several churches are mentioned in other parishes near, apparently because they had some substantial amount of glebe land belonging to them.

NEIGHBOURING PARISHES.

We shall understand somewhat better the picture which Domesday gives us of Lowestoft if we take a glance at the accounts which it gives of some other parishes in the immediate neighbourhood.

The parishes in Lothingland, in which the greatest number of estates are returned are Somerleyton, Lound, and Belton. I believe that these parishes contain the best agricultural land in the district. The church in Somerleyton is mentioned as having 20 acres of glebe belonging to it, but the parish priest—or parson as he was afterwards called—appears to have possessed a small manor of 40 acres in addition.

Gunton is not mentioned in Domesday. Corton appears as containing an estate belonging to the Crown, of which no details are given, except that it was valued at 20s.

The lost Newton is mentioned as a small estate of 30 acres, owned by a freeman, and valued at 3s. Newton existed for several hundred years as a small hamlet to the north of Corton, but has been long since carried away by the sea, except parts of one or two fields still left on the top of the cliff.

In the Half-Hundred of Mutford, the parishes of Kessingland, Carlton, and Mutford, appear as containing large villages, and several estates which had passed from Saxon Thanes to Norman Barons.

In Mutford there were two churches, with lands belonging to them in Rushmere, Kirkley, Pakefield, and Gisleham. In the account of Pakefield we hear that Earl Gurth possessed one mediety of the living, which was divided between two Rectors up to the 17th century. It is probable that the prototype of the present double church was in existence then.

HERRING RENTS.

Domesday contains evidence of much interest in connection with the history of our herring fishery, in the returns of herring rents from farms in this neighbourhood.

One of the largest Norman landowners in these parts was Hugo de Montfort. He appears to have been connected with the sea when in Normandy, for it is said that he supplied William with 60 ships to carry his men over to England. Whether Hugo was very fond of herrings, or because he wished to encourage the herring fishery we know not, but it appears that when he had turned out the English landowner Burchard, and taken possession of his farms, he not only raised the money rents, but he required many of the tenants to supply him with herrings in addition.

In Kessingland he became the landlord of a small estate held by four freeman, which had been valued at 10s., but from which Hugo demanded a rent of 22,000 herrings. ^[17]

In Rushmere he had a farm which paid him as rent 700 herrings.

In Gisleham he had two small farms, from one of which he got 2s. 6d. and 200 herrings, and from the other 5s. and 300 herrings.

In Carlton he had one farm from which he got 3s. as rent and 400 herrings, and from another 5s. and 300 herrings.

In Kirkley he had a farm from which he got 3s. and 200 herrings.

He also got herring rents from farms in Worlingham, Weston, Wangford, and some other places which I cannot identify.

This Norman Baron doubtless desired to encourage the herring fishery, and so imposed these herring rents on his tenants who occupied farms near the coast, where herrings could easily be obtained. Had he possessed any land in Lowestoft I have no doubt that we should read in Domesday of herring rents being paid from this parish. The large number demanded from the four freemen in Kessingland is good evidence, I think, of the herring fishery being carried on there at this time to a considerable extent. Kessingland was a large village at this time, with a haven in the little river which now

separates it from Benacre. Although Domesday makes no mention of any fishermen, or fishing trade, in the returns for these parishes, the herring rents are conclusive evidence that herrings were caught off this coast in large quantities at this time. Sea-fishing was probably carried on also by the inhabitants of Pakefield and Kirkley at this time.

Kirkley does not appear to have ever been more than a small village, although it gave its name to the Roads off this coast.

Carlton was a large and populous village at this time, and appears to have been so from early Saxon times. It is supposed that the name is taken from the large number of "Ceorls," or "Karls,"—as we should now say "Working-class people"—who lived there. Lake Lothing would furnish them with an easy passage to and from the sea, and when landed at Carlton the fish would be on the old Roman road leading to Beccles, Norwich, and Bury. Doubtless the herrings which Hugh de Montfort got from his farms in this parish were caught by fishermen living there. Fishing in small boats, by what we should now call "longshore-men," had probably been carried on from these sea-side villages for hundreds of years before Domesday.

But at this time the herring fishery had become established at Yarmouth, and the celebrated Free Fair was already held there during the autumn season. In the account of Gorleston we have noticed that 24 men belonging to that manor were said to be fishermen living away at Yarmouth. As there were as many as 70 burgesses in Yarmouth in the time of King Edward, and the town paid a large rent to the king, we may be quite safe in regarding Yarmouth as doing a large business in the herring trade even in late Saxon times.

LIVE STOCK ON THE FARMS.

Although the returns from the different estates in our neighbourhood are compiled on the same system in Domesday Book, they vary very much in respect of the details given, particularly in respect of the live stock on the manors and farms reported. This is no more than what we should expect.

The returns of the live stock which they possessed would give the Conqueror very useful information as to the amount of taxation his subjects could bear, and he could hardly expect to get many trust-worthy returns on

this head. In the accounts of many of the manors they are omitted entirely. In the accounts of others the return of live stock is very small in proportion to the size of the estate. It is probable that the stock owned by the tenants is omitted altogether. Pigs must have been the animals on which the lower class of tenants principally relied for their meat, but the pigs in most of the returns are very few, only eight on the King's estate in Lowestoft.

In the account of a large manor at Mutford—to which 40 tenants belonged—the return of live stock mentions 7 geese, 30 pigs, 30 goats, and two hives of bees.

Some of the estates appear to have been very well stocked. On the farm of 40 acres belonging to the parish priest of Somerleyton, there was 1 horse, 4 cows, 5 pigs, and 33 sheep—besides the plough cattle. On the King's farm in Lound, which was not half the size of his Lowestoft estate, there were 50 pigs.

On a farm of 40 acres in Belton there was 1 horse, 2 geese, 7 pigs, 30 sheep, and 3 goats.

In addition to these animals the owners of these estates had draught oxen for ploughing.

It would appear that the produce of the arable land was nearly all required for feeding its human occupants, and that the geese and the pigs and other animals would be limited to such numbers as could find food for themselves in the woods and wild land which was common to the lords and tenants of each manor.

These returns of live stock, although they would have been very valuable to the Conqueror and ourselves, if they were complete and trustworthy, are so manifestly defective and irregularly made in most cases, that they furnish very unsatisfactory materials for forming an idea of the general condition of the peasantry. But as we know that all the tenants of a manor—even the lowest class of bondmen—occupied some land for the maintenance of themselves and their families, with rights of pasturage on the common lands, probably most had some cattle and pigs of their own, and were well provided with the necessities of life.

The country must have been in a stationary condition for hundreds of years in the Saxon period owing to the entire absence of trade, and the almost entire absence of money. The silver penny was the only coin in circulation, and indeed for some two centuries after.

With little or no opportunities for selling the produce of their estates, the landowners had little reason to improve them, nor could they increase their land under tillage without interfering with the rights of their tenants on the waste land. The system of serfdom, moreover, whilst it secured a living to a large number of people, bound them and their children to the estates on which they held their land, and must have tended to deprive a large part of the population of the country of any stimulus to enterprise or self improvement.

SERFDOM.

It appears from Mr. Turner's computation of the different classes forming the population of Suffolk, as shown in Domesday, that some 10,000 out of the 22,000 were in the condition of serfs, bound to some manor, either as small tenant farmers paying rent as well as services for their land, or as cottage tenants working on the demesne, or as mere slaves or thralls, the absolute property of the lords. ^[21] I will not take you further into this obscure and complicated question than to say that the bondage of the greater part of the Anglo-Saxon peasantry implied little more than that they were bound to remain on the estate to perform the services for which they held their land. These services were fixed as strictly as a money rent would be, and left them plenty of time for working on their own land, while the law provided various means by which they could obtain freedom for themselves and their children. The Church—at all events the parish clergy—always used their influence to obtain the freedom of the lowest and most servile class. We read of a case where an hereditary serf was holding the high position of bailiff of a large manor. Turner says:—

“It is mentioned in the laws as an incentive to proper actions that through God's gift a servile thrall may become a thane, and a cœorl an Earl, just as a singer may become a priest and a writer a bishop.” In the time of Ethelstane it is expressly declared that “if a cœorl have a full proprietorship of five hides of land, a church, and a kitchen, a bell

house and a burghate seat, and an appropriate office in the King's hall, he shall thenceforth be a thane by right"

The opportunities, however, which the condition of society in Saxon times offered for a serf to rise from the lowest to the highest ranks must have been very few. In these days trade and the professions furnish such a ladder, but in Saxon times there was no profession but the church, whose members sometimes found remunerative employment as clerks, or by devoting themselves to religious duties rose to the highest offices. The only trades in Saxon times were those of the handicraftsmen, and, except in London and a few other towns, these would be confined to the blacksmith and a few such craftsmen as were indispensable to the smallest agricultural community.

CRAFTSMEN.

Among the few literary productions of the Anglo Saxons which have been preserved, we find descriptions of the more common trades given in the form of dialogues. I take the following from Mr. Turner's work. The shoemaker (sceowerhta) thus describes his trade:—

"My craft is very necessary to you. I buy hides and skins and prepare them by art, and make of them shoes of various kinds, and none of you can winter without my craft. I make ankle leathers, shoes, and leather hose; bridle thongs, trappings, neck pieces, and halters; bottles, flasks, boiling vessels, wallets and pouches."

So the Saxon shoemaker was a much more accomplished man than the shoemaker of the present day, for he combined the arts of the tanner, the currier, and the harness maker with that of shoemaking. The smith says:—

"Whence the share of the ploughman or the goad? but from my art.

"Whence to the fisherman his angle? or to the shoe maker his awl? or to the sempstress her needle but from my art?"

In Hereford there are six smiths mentioned in Domesday.

They paid a penny a year rent for their forges, and had to make up 120 pieces of iron for the king from the metal supplied them. He must have

been a very skilful blacksmith who could turn out such different ironwork as ploughshares and needles and fishhooks. A very important tradesman was the miller. Mills were a much valued property, and are always mentioned in the Domesday returns.

THE MERCHANT.

What foreign trade was in Saxon time appears from the account which the merchant gives of his business—

“I say that I am useful to the king, and to ealdermen, and to the rich, and to the people. I ascend my ship with my merchandise, and sail over the sealike places, and sell my things, and buy dear things which are not produced in this land, and I bring them to you here with the great danger of the sea, and sometimes I suffer shipwreck, with the loss of all my things, scarcely escaping myself. What do you bring to us?—Skins, silks, costly gums and gold, various garments, pigment, wine, oil, ivory, orichalcus, copper, tin, silver, glass, and such like. Will you sell your things here as you brought them there?—I will not, because what would my labour benefit me? I will sell them here dearer than I bought them there that I may have some profit to feed me and my wife and children.”

So you see the Saxon merchant was an enterprising skipper, who owned his ship, and having filled it with a cargo of English produce, took it over to some foreign port and exchanged it for a cargo of foreign goods, of all sorts and kinds, which he brought back and sold at a high price in England.

THE FISHERMAN.

We have a sketch of a fisherman of the Saxon period, drawn by no less a personage than Alfric, Archbishop of Canterbury, who was living in the 11th century and was the wisest man of his time, according to the Saxon chronicle. He wrote some colloquies for his pupils to turn into Latin. One of them treats of the fisherman:—

“What gettest thou by thy art?—Big loaves, clothing, and money. How do you take fish?—I ascend my ship, and cast my net into the

river; I also take a hook, a bait, and a rod. Suppose the fishes are unclean?—I throw the unclean out, and take the clean for food. Where do you sell your fish?—In the city. Who buys them?—The citizens; I cannot take so many as I can sell. What fishes do you take?—Eels, haddocks, minnows, eel-pouts, skate, and lampreys, and whatever swims in the river. (The Archbishop rather mixed his fresh-water and saltwater fish). Why do you not fish in the sea?—Sometimes I do, but rarely because a great ship is necessary there. What do you take in the sea?—Herrings, salmon, porpoises, sturgeons, oysters, crabs, muscles, winkles, cockles, flounder, plaices, lobsters, and such like. Can you take a whale?—No, it is dangerous to take a whale; it is safer for me to go to the river with my ship than to go with many ships to hunt whales. Why?—Because it is more pleasant to me to take fish which I can kill with one blow. Yet many take whales without danger, and then they get a great price, but I dare not for the fearfulness of my mind.”

These whale catchers were Norwegians and Danes, who, when they were not raiding in England, employed themselves in whale fishing off the Norwegian Coast.

INTELLECTUAL CONDITION OF OUR ANCESTORS.

But these Anglo-Danes of East Anglia were our ancestors. They lived in the same villages, and tilled the same land as the peasantry of the present day, and many of our country parishes must have been in Saxon times very much what they are now, in which the squire and the parson fill the places of the thane and the parish priest and a few farmers holding land under the squire, and agricultural labourers, enough and no more, than are required to cultivate the land, with perhaps a village blacksmith and shoemaker, complete the roll of the resident population. The intellectual condition of our ancestors must have been very low. Mr. Turner describes it as the “twilight of mind,” and he says there is a great similarity in their poetry to that of the natives of New Zealand. Even the thanes and magnates of the land were, with a very few exceptions, entirely uneducated, and if they had learnt to read there would have been few books from which they could have got any knowledge. King Alfred was one of the few who could read in his time. With the upper classes in such a barbarous condition no wonder we

are told that gross excess in eating and drinking was their characteristic failing. Even the great and good Alfred is said to have destroyed his constitution by having to take part in banqueting for several days and nights in celebration of his wedding. The prevalence of this low vice may be to a great extent attributed to the want of any means by which the produce of their farms could be made a better use of. It was not until trade sprung up that they could sell their surplus produce and spend the proceeds in the purchase of things which would lead to a higher and more civilised standard of living. But during the whole of the Saxon period the monotonous routine of their agricultural occupations was only varied by war, which was frequent enough; and as war in those days was always accompanied by devastation and slaughter, the slow progress of our Saxon fore-fathers in wealth and civilisation is easily accounted for, and we can well understand how it was that this fertile country was only partially cultivated when the Normans came over, and how it was that the Conqueror found his property in “Lothuwistoft” in such a backward state.

Such was Lowestoft in its infancy—a small agricultural village of less importance than Carlton or Mutford or Kessingland. We shall now lose sight of her for some 300 years. When she again appears in the records of the past she will appear as a town of some importance to the country, and as a rival of Yarmouth in the herring trade.

ETYMOLOGY OF “LOWESTOFT.”

In conclusion, I will say a few words about the name. In the facsimile copy of Domesday it is Lothu Wistoft. In the grant of the privileges of “Ancient Demesne” by Elizabeth, which recites a certificate from Chancery that the parish was in demesne of the Crown in the time of William the Conqueror the name is spelt “Lothn-wistoft.” Either spelling affords good evidence of the origin of the word, and leaves little room for doubting its etymology. Lothu-wistoft or Lothn-wistoft was the “toft” by Loth-wis or Lothen-wis, or Lothing-wis, “wis” being the same word as “ouse,” a word used in Saxon times as an equivalent for “lake,” as in Wisbech, stagnant or slow moving water, as distinguished from a quick running river. The place was probably at first only called “toft,” a very common word in Saxon times, denoting a small homestead, and not uncommonly found in existing names—as “Toft Monks,” “Stowlangtoft,” &c. “Loth-wis” or “Lothn-wis” was equivalent to

“Lothing Lake,” the piece of water which played the important part of separating Lothing, or Lothingland, from the rest of the county of Suffolk. The abbreviation of this long word into a shorter form was inevitable, and as early as 1327 we find it appearing in the Subsidy Rolls as “Lowystofth.” The forms it took after this time are multitudinous, but the later abbreviations and corruptions, due to vulgar pronunciations and bad spelling, are no guide whatever to its original etymology Lothing or Lothingland, Lothingaland, Loddingland, Luddingland—was the “ing” or property of Loth, Lod, or Lud, probably a Danish captain, to whom this district was given by the Danish conquerors of East Anglia after it had been settled in townships by the Angles (compare Kessingland, &c.)

LECTURE II.

PART I.—LOWESTOFT IN THE 14th CENTURY.—RISE AND FALL OF YARMOUTH.

PART II.—RISE OF LOWESTOFT.—PARLIAMENTARY WAR WITH YARMOUTH.

PART III.—THE LAY SUBSIDIES.

PART I.—LOWESTOFT IN THE 14th CENTURY.

Lowestoft lies hid in oblivion for some 300 years after her appearance in Domesday. During this time great changes had taken place in the country at large as well as in Lowestoft. A new regime had been established, under which Saxon and Angle, Dane and Norman, had been welded into one nation, and laws and institutions were in force, which are familiar features in our present legal and political system. Although still 500 years from the present time, England, in Edward III.'s reign, was much more like the England of to-day than the country described in Domesday. Foreign trade had sprung up. Wheat and wool were grown in large quantities and exported from Yarmouth and other ports. The penny was no longer the only silver coin, and gold coins of several different sizes and values were in circulation. Last, and not least, the herring fishery was being carried on to a very large extent on this coast, and was an object of national and international importance.

It is in the middle of Edward III.'s reign that Lowestoft appears for the second time in our national records. But she is no longer the insignificant agricultural village of Domesday. She is evidently a rising little town, in the modern sense of the word, carrying on a sea trade of some importance in fish and other light merchandise. She had ceased for some years to be "Royal demesne," and was now the property of the King's cousin—John,

Duke of Brittany and Earl of Richmond—to whom the manor of Gorleston and the rest of the Royal estates in this neighbourhood had been given by the King's grandfather, Edward I.

It was at this time that she was brought into prominence by a long Parliamentary contest with Yarmouth about the right to buy and land herrings at Lowestoft from foreign and west country fishermen anchored in the roads opposite her shore, then called Kirkley Road.

That you may understand the full import of the circumstances which brought about this contest with Yarmouth we must take a glance at the history of that town up to that period.

RISE OF YARMOUTH.

The origin of Yarmouth is unique; the bar of a wide Estuary, a sandbank in the sea, seized upon for human habitation before even nature herself had trusted it with any vegetation beyond a few patches of marram grass to bind the sand together.

Who the bold fishermen were—whether Angles or Danes (probably Danes) who first dared to build cottages on such a site we know not, nor when the occupation of this sandbank first began. The name of the “Cerdick Sands” which the Saxons had given it, implies that it was well above water in the earliest part of the Saxon period, whether Cerdick did or not pay his traditional visit to this spot. It must have been in that condition several years before the time of Edward the Confessor, when, as we have already learnt from Domesday, Yarmouth was a town of some wealth and importance. The following well approved tradition of the origin of Yarmouth is given by an old writer (Jeakes) in his History of the Cinque Ports.

“Beside the staple trade of these towns (the Cinque Ports) consisting much in fishing, not only of fresh fish at home, but of herring every year in the season thereof at Yarmouth, where bringing them ashore in the sale and delivery among the multitude, divers differences and stirrs arose for want of a settled order in that town, or as tradition still reports, before there was any town or any show of a town than some huts and cabins set up near the waterside like the booths and huts in a

fair; and that during the time of the herring fair there the Ports were forced to agree and join together yearly to elect and send thither their Bailiffs to abide there during the herring season allowing them a certain sum for their expenses.”

The rapid growth of Yarmouth from a few fishermen’s “huts and cabins” to one of the most important and populous sea ports in the country was evidently due to her great natural advantages. She possessed a large and deep harbour, with a long natural quay, the inside face of the sandbank. Her position commanded the entrance to four rivers which were navigable by light craft for many miles into Norfolk and Suffolk. Last but not least the town was most conveniently situated as a rendezvous for fishermen coming from the Cinque ports, and other places in the South of England, as well as from France and Holland to take part in the autumnal herring harvest.

From William the Conqueror downwards our Kings were well aware of the importance of Yarmouth, for the defence of the East Coast, and of the value of the herring fishery. Charters and ordinances were issued to regulate the autumnal Herring Fair, and to insure its being conducted on strictly free-trade principles, while the Yarmouth merchants made good use of their position as the seat of the trade, and produced in a few years a fleet of ships and sailors, which in Edward the III.’s time was able to take a leading part in our naval history.

We first hear of Yarmouth’s naval exploits in her quarrels with the Cinque Ports. After Yarmouth had obtained “Home Rule” under the charter of King John, she resented being any longer nursed by the Barons of the Cinque Ports, in the management of the autumnal Herring Fair, and she grudged the rights given to the western fishermen to use her harbour and her denes during the season for their own advantage.

In times when it was a common practice for Parliament and the Crown to give special privileges to towns or other bodies, without providing any adequate means for securing their enjoyment, the practice of taking the law into your own hands, which is proverbially a mistake in these days, was the only means by which the possessors of privileges could maintain them, and accordingly we find Yarmouth and the Cinque ports repeatedly engaged in

what can only be described as naval wars, arising from some conflict in the provisions of their respective charters.

In 1281 Yarmouth was fined £1,000 for doing divers trespasses and damages to the Cinque Ports upon the south coast as far as Shoreham, Portsmouth and other places.

In 1303 we find Yarmouth sending ships to join the Royal fleet which was to escort Edward I. to Flanders. Having put the King ashore the Yarmouth and the Cinque Ports men, being well equipped for fight take the opportunity of paying off old scores by engaging in a furious battle in which 25 Yarmouth ships were burnt. According to another account 37 Yarmouth ships were greatly damaged and £15,000 worth of loss inflicted.

We have other evidence of Yarmouth's naval power in the reign of Edward III. In 1337 Yarmouth supplies Edward III. with 20 "men of war" (as they were called) to carry the King's ambassadors to Hainault. On their return they did a little privateering business on their own account and took two Flemish ships laden with provisions for Scotland, and killed the Bishop of Glasgow who was unfortunately on board one of them.

In 1340 Yarmouth contributed 52 ships to the Fleet with which Edward won the battle of the Swin against France off Sluys in Holland. The admiral of this fleet was John Perebrown, a Yarmouth man, whose name appears some 15 times in the lists of Bailiffs. Edward was particularly proud of this victory. He had a new gold coinage issued to commemorate it, the first nobles struck, bearing an effigy of himself sitting in the middle of a ship, with a shield on his left arm bearing the arms of England and France.

In 1342 Edward came himself to Yarmouth and sailed with a fleet of 20 Yarmouth ships to the coast of Brittany, where he was engaged in laying siege to the town of Vannes. Having landed the king the Yarmouth ships are attacked by the French fleet, and being worsted (doubtless by a superior force) they take to flight leaving the king in the lurch. The king having managed, with the assistance of the Pope, to make a truce with France, comes home and at once summons all the owners as well as the captains and the crews of the Yarmouth ships to "answer for their contemptibly deserting him, leaving other our faithful subjects there with us in danger of our lives."

The names of the ships and of all their owners and captains, are entered in the Kings' writ of summons ^[31] and they are required to attend with all the sailors at Westminster. We do not hear of their being punished. They probably were able to satisfy the King that on this occasion discretion was the better part of valour, and we find them fighting for the King again 5 years afterwards. This was in 1347 when he was engaged in the celebrated siege of Calais.

On this occasion Yarmouth contributed no less than 43 ships to the Royal fleet and 1075 mariners, a larger number of ships and men than even London supplied.

The importance of Yarmouth at this time and the magnitude of its fleet relative to that of other towns is shown by the fact that the total number of ships which the Cinque Ports themselves were required to supply was 57.

According to a statement in the petition of the town to Henry VII., Yarmouth had at this time 80 ships with forestages and 170 ships without. The larger ships were apparently about the size of a 100 ton ship of the present day.

These records are interesting in themselves, and are important episodes in our national history. I have quoted them for the purpose of showing the magnitude and importance of Yarmouth at this time. A town which could fit out 43 ships for the King's Navy and man them with 1075 sailors at their own cost, (for the King only paid for the maintenance of the sailors while in his service), must have been both wealthy and populous. She had acquired her wealth and naval power almost entirely from the herring fishery, and from the large extent to which her own population was engaged in it. But the trade carried on by her merchants during the autumn season with the fish catchers and fish buyers from other towns at home and abroad contributed largely to the wealth of the town. It appears from a return which has been preserved of the amount taken for the murage tax, (a small charge on ships and merchandise added to the harbour dues towards the expense of building the town wall) that the amount received in the year 1343 during the weeks comprising the herring season was £54 6s. out of a total sum of £66 7s. 11d. collected during the twelve months. The entries show the large number of foreign vessels coming to the Autumn Fair. In

five days in September in this year, 60 foreign ships entered the harbour, of which 10 were from Lombardy. ^[32]

THE BLACK PLAGUE AT YARMOUTH.

It was when Yarmouth was in the height of her prosperity, and the herring trade becoming more and more valuable owing to the superstitious importance attached to the rules as to fasting, that she was destined to suffer a ruinous collapse from which she did not recover for several centuries, and which deprived her for ever of the position of eminence as a naval town which she had held during the first half of the 14th century. The main cause of her fall was the loss within the space of a few months of more than half her population from the terrible epidemic known as the Black Plague. Great as was the destruction of life from this fell disease in other towns and parishes in the country, there could have been no town where the destruction of life was greater and the consequent impoverishment more felt. Probably no town in England was more favourably conditioned for the work of the destroyer. A large population of poor fishermen and sailors were crowded together in small hovels, closely packed within the walls, in double rows, separated by narrow alleys of six feet or less in breadth. This arrangement had evidently been adopted by the first occupants of the storm-swept sandbank for convenience and warmth. But it was an arrangement terribly conducive to the rapid spread of any infectious disease which had once gained a footing in the town.

In that year (1349), according to the account given a hundred and fifty years afterwards by the town's people themselves in a petition to Henry VII., more than half the population, including many of its leading merchants fell victims to the disease.

“In the 31st (sic) year of the reign of King Edward the 3rd by a great visitation of Almighty God there was so great death of people within the same towne that there was buried in the parish church and church yard of the said towne in one year 7052 men, by reason whereof the most part of the dwelling places and the inhabitations of the said towne stode desolate, and fell into utter ruin and decay, which at this day are gardens and void grounds as evidently appeareth.” ^[33]

Whatever may have been the exact population of Yarmouth at the time of this terrible visitation (it could not have been more than 10 or 12,000) it must have been a very different town after 1350 to what it was in the first half of the century, and although the merchants might retain their hold upon the herring trade, the loss of so large a part of the fishing population must have made them much more dependant upon their visitors for the supply of fish in the autumn season than before.

YARMOUTH HARBOUR BLOCKED UP.

But the loss of fishermen was not the only affliction from which Yarmouth was to suffer. The continuance of her trade and even of her very existence was in peril from the blocking up of her harbour. During the whole period during which the town was itself growing, from the time of the Conquest to that of which we are now treating, the sandbank on which it was built was being gradually extended southwards, enclosing the river, and carrying its mouth further and further South, until at the beginning of the 14th century the mouth of the Yarmouth Harbour was opposite the Gunton Denes and within a mile of Lowestoft. In a few more years the mouth of the Yare would have been at Lowestoft, and Lowestoft would have occupied a more favourable position for the trade of the Yare than Yarmouth itself.

Lowestoft had already taken advantage of the opportunities which the nearness of the Harbour mouth gave her of getting a share in the herring trade. The sea opposite her shore then called "Kirkley Road" offered the same resting place for wind-bound ships as it does now, and as the mouth of the Haven was always in the condition of being more or less blocked with sand, it only needed a little enterprise on the part of Lowestoft people to get fishing boats bound for Yarmouth to discharge their herrings on the Gunton denes, rather than incur the certain loss of time in waiting for the tide to carry them up to Yarmouth quay, and the danger of being wrecked at the harbour mouth.

In the early part of the century, when Yarmouth was in her most flourishing condition, she had both men and money, and she had undertaken the first of her numerous efforts to remedy this chronic trouble by cutting out a new mouth for her harbour. This mouth, which was on the north side of Corton, was kept open for some 26 years.

Although during this time the herring trade carried on by Yarmouth, with its harbour and Free Fair, was out of all proportion to that of the seaside villages in its neighbourhood, it is evident that Lowestoft and Winterton, and perhaps some of the other villages, had taken part in the international trade of the autumn season, besides catching herrings in their own boats.

The rules as to fasting during Lent, as well as on Fridays and Saturdays in every week during the year, which were strictly enforced at this time by a powerful Church, had rendered the east coast herring trade a matter of national importance. The ability to purchase red herrings for lenten fare was a necessity for the salvation, not only of the lives, but of the souls of the people. Even our soldiers when engaged in war had to observe the rules as to fasting. In 1358 we hear of 50 lasts of herring being shipped at Portsmouth for the use of the army in France. In 1429 Sir John Fastolf was serving in the Duke of Bedford's army at the siege of Orleans. Sir John was himself of an old Yarmouth family. Several members of his family were on the lists of bailiffs for the previous century, and he is said to have had a house in Yarmouth as well as his Castle at Caister near by. His connection with Yarmouth probably enabled him to procure a supply of herrings for the army not altogether without profit to himself. At all events on Ash-Wednesday, 1429, he had charge of a train of 500 wagons of herrings on its way from Paris to Orleans. He was attacked by a large force of French at a village near Orleans. He had recourse to the tactics we have so often heard of lately in our wars in South Africa. He formed his wagons into laager, and from behind these defences the English Archers shot their arrows with such deadly effect, that they drove the enemy off with great slaughter, and Sir John got his herrings safely into camp. This was the Battle of Herrings, one of the most celebrated victories in the French wars.

In order to secure an abundant provision of herrings at a cheap price, the Parliament of 1357 passed the well known Statute of Herrings, which was aimed particularly at securing the conduct of the Free Fair, and of the Yarmouth herring trade, in the interests of the country at large. It is evident from the preamble to this statute that it was aimed directly against the practice of the Yarmouth merchants "forestalling" the Fair by buying their herrings from the ships which anchored in the roads outside the harbour mouth.

In order to prevent the Yarmouth merchants supplying themselves by this means to the disadvantage of the general purchaser at the Fair, the statute enacts that the fishers after having supplied the “London Pykers” (a special exception in favour of London)—

“Shall bring all the remnant of their herring to the said fair to sell there, so that none shall sell herring in any place about the haven of Great Yarmouth by seven “Leues” (Leucæ or Leagues) unless it be herring of their own catching.”

This prohibition against “forestalling” the Fair, although aimed directly against the Yarmouth merchants themselves, evidently applied equally to all persons coming from Lowestoft, or any other place, to buy herrings from ships in Kirkley Road. It was not, however, the intention of Parliament at this time to give any monopoly to Yarmouth; and within two years after the passing of this statute, we find that an ordinance was issued expressly exempting Lowestoft and Winterton from this prohibition.

This ordinance enacted that—

“If the fishers be in free will to sell their herrings in the said road after they be anchored there, it shall be lawful for the merchants of Lowestoft and Winterton to buy herrings of the fishers, as free as the London pycards, to serve their carts and horses that come thither from other countries, and to hang there.”

This would appear to be the earliest record in which Lowestoft appears, since Domesday, which furnishes any evidence of her having risen from the humble status she occupied at that time.

Although this notice of Lowestoft does not imply that Lowestoft in 1359 was a larger place than Winterton then was, it shows very clearly that a trade in herrings, at all events during the Autumnal season, had been established here, and that it was considered of sufficient importance to deserve a special ordinance permitting its continuance, notwithstanding the statute of Herrings. It also tells us what the system of trade at Lowestoft was at this time. Lowestoft men went out to the foreign and other fishing boats when anchored in the roads, and bought and landed herrings on the

Denes. Here they were sold to the “peddlers” or travelling fish merchants, who, having loaded their pack horses and their carts, started off homewards, to sell their fish as fresh as possible in distant inland towns.

The last words of the proviso “and to hang there” clearly authorised the Lowestoft merchants not only to buy fish for resale, but to supply themselves with herrings for hanging in their own fish houses.

PART II.—RISE OF LOWESTOFT, AND PARLIAMENTARY WAR WITH YARMOUTH.

The free trade policy of the Statute of Herrings had not the desired effect of reducing the price of herrings, and the condition of Yarmouth was getting worst. Her haven was again becoming unnavigable, and merchants were leaving the town. On the cliff, a mile south of the mouth of the harbour, the little town of Lowestoft was growing up, and beginning to take an important share in the trade on which Yarmouth depended for her existence. It was under these circumstances that Yarmouth petitioned the King to grant her a charter which could protect her trade against the competition of Lowestoft, and mitigate the evil caused by the blocking up of the mouth of her harbour.

Edward III. had every reason to befriend Yarmouth, and to prevent the ruin of an important naval town. So in 1371 he issued a Commission to enquire how far the charter demanded by Yarmouth would be advantageous or disadvantageous to the country. The Commission reported in favour of the grant, and in 1373 the charter was granted which was to put the towns of Yarmouth and Lowestoft at loggerheads for some 300 years, and involve them in bouts of costly litigation.

The effect of the charter was to give Yarmouth two strings to her bow against Lowestoft.

(1) It annexed to Yarmouth the “place in the high seas called Kirkley Road” *i.e.* the whole of the roads along the coast from Pakefield to the mouth of Yarmouth harbour, wherever that might happen to be, and gave the Yarmouth Bailiffs the right of taking the same tolls from ships discharging

cargo in any part of these roads, which they were empowered to take from ships inside the harbour.

(2) It prohibited the buying and selling of herrings during the time of the Autumnal fair at any place on sea or land, within “7 leucæ” of the town of Great Yarmouth, except at the town itself, and gave the Bailiffs authority to seize any ship &c. from which any herrings were sold in contravention of the charter.

As it was stated in the report of the Commission, on which this charter was granted, that Lowestoft was 5 “leucæ” from Yarmouth, it is clear that it was intended to include Lowestoft in the prohibition. It is also clear than the word “leuca” was used to denote a distance of nearly two miles. There was no legally established measure of distance at this time. Our statute mile was not established until 200 years afterwards, in Queen Elizabeth’s reign.

That the Yarmouth merchants had some reason to desire the protection of their trade against the competition of Lowestoft, is shown by a statement in a letter of complaint written from Yarmouth to the Barons of the Cinque Ports some years afterwards, in which they are blamed for not enforcing the observance of the charter by their own fishermen, and requiring them to take their fish to Yarmouth, “for if they can deliver at Lowestoft, they will bring very few or none to us.” ^[39]

Such being the intention of the Charter you will not be surprised to learn that it met with strenuous opposition from Lowestoft.

LOWESTOFT MEN PROSECUTED BY THE YARMOUTH BAILIFFS FOR CONTRAVENTION OF THIS CHARTER.

When the foreign and west country fishing boats appeared in the Roads in the autumn, and the Lowestoft men went out, as usual, with their boats to buy herring from the ships at anchor off the denes, officers appeared from Yarmouth armed with authority from the Bailiffs, to enforce the new law, and to seize any ships selling or discharging herrings in contravention of their charter. They found a large number of Lowestoft men purchasing herrings from ships within the prohibited area, but instead of attempting to seize the ships, which was their proper remedy under the charter, they took the more prudent course of prosecuting the buyers, and some 25 Lowestoft

men were summoned before the Yarmouth Bailiffs. They met the indictment brought against them by an appeal, and it was removed by writ of certiorari to the King's court in Westminster Hall. The indictment states, after reciting the charter,—

“That on Friday next after the feast of St. Luke the Evangelist (18th October) John Botild of Lowestoft bought of John Tramp of Ostend, an alien, in the said place called Kirkley Road, which is within the 7 leuks, twenty-five lasts of new herring (value 50 pounds.) and the said alien took his boat, (value 20 shilling) out of the ship, and in the night elongated himself (i.e. ran away) to his own proper house, and hauled the boat ashore, so that the said bailiffs could not touch the said herring, nor the boat, nor the ship, to arrest them, because the aforesaid alien had by the advice of the said John Botild elongated himself, nor could they thence by any means answer it as a forfeiture to the Lord the King.”

The defence of the Lowestoft men was that the prohibited area only extended as far as a place called “Stampard” (the Stanford channel?) construing the term “leuca”, as equivalent to “mile,” (which was the construction afterwards put upon it); and that the ships from which they bought herrings were lying beyond this distance. The trial of the appeal came on before the King at Westminster Hall in the Spring term of 1374, but was adjourned for further hearing; a proceeding caused probably by the congested state of business in the Law Courts, an inconvenience to suitors not unknown even at the present time. What the end of the case was we are not informed, but it evidently went against Lowestoft. Meanwhile the Lowestoft people had appealed to another power. In 1376 they presented a petition to Parliament for the repeal of the obnoxious charter.

FIRST REVOCATION OF EDWARD'S CHARTER TO YARMOUTH.

Their petition was supported by another from the Commons of the counties of Suffolk, Essex, Cambridge, Huntingdon, Lincoln, Northampton, Bedford, Bucks, Leicester and other counties. Such was the importance to the country of our growing town at the end of 14th century!!

Parliament made very short work of the business, and the King was compelled to withdraw his charter. This he did in the following somewhat ungracious terms—

“Edward by the grace of God, King of England &c. Know ye that we, the liberties and privileges of the Burgesses and good men of the town of Great Yarmouth lately so by us given and granted, *at the suit and voluntary clamour of certain people* alleging that those privileges and liberties have been and are contrary to the profit of the republic, and to us and our people prejudicial and hurtful, in our Parliament holden at Westminster, &c. have revoked and totally made void.”

It is a curious coincidence which adds much to the interest of our story, that this petition from our old townspeople was one of the several hundred introduced in this Parliament, which is known in history as the “Good Parliament” owing to the number of popular measures which were passed by it. The popular Prince of Wales, Edward the Black Prince, was still living, and the Commons had his support against the Crown party led by his uncle, John of Gaunt.

In the following year (1377) the old King dies, and Richard II., then a boy of 11, becomes our ruler. Yarmouth lost no time in taking advantage of the opportunity which the succession of a new government offered for re-opening the question. She succeeded in getting another Commission of enquiry which apparently confined its labours to hearing the Yarmouth case. Without hearing Lowestoft, they reported that Yarmouth was a “walled town capable of resisting the King’s enemies,” but that Lowestoft was, “not inclosed and was incapable of defence.” They accordingly advised that Edward’s charter should be regranted.

The following Parliament (1378) was not held at Westminster as usual. The popular Prince of Wales was dead; and John of Gaunt and the Crown party were having their own way. It appears that he had got into bad relations with the citizens of London owing to the killing of a knight at Westminster by his retainers, and he thought it safer under the circumstances that the Commons should not be invited to meet there; so he got the King to summon his Parliament to meet at Gloucester. At such a distance the Commons of the Eastern Counties were not likely to attend in their full

numbers; nor were those who did sit in this Parliament allowed to take the influential part in its proceedings which they had taken in the previous parliament. From these or other causes the Crown party had their own way, and Yarmouth got its charter regranted and confirmed.

PROCLAMATION OF THE CHARTER AT LOWESTOFT.

The task was then imposed upon the under sheriff of Norfolk and Suffolk of proclaiming the obnoxious law at Lowestoft. How it was received appears from the sheriffs account of the riot which took place on the occasion, for which May day seems to have been selected, on account doubtless of it's being a holiday, when his majesty's liege subjects of Lowestoft would be able all to attend and listen to the royal proclamation.

“On which day the aforesaid under sheriff at Lowestoft attended to proclaim the aforesaid liberties and he openly shewed the letters patent of the Lord the King on that account, when there came Martin Terry, Stephen Shelford. Henry Freeborn, and Emma his wife, John Spencer, and Alice his wife, &c. &c. with a great company of men and women of the town aforesaid of whose names they are ignorant by the abetment and procurement of William Hannell, John Blower, Thomas de Wade, Richard Skinner, William Large &c., and violently resisted and hindered him, some saying to the sheriff they would not suffer him to depart, others forcing his letters from him and saying (among other language used on the occasion which is unfortunately or perhaps fortunately obliterated)—that if he dared any more to come for any execution of the Lord the King he should not escape. So that for fear of death he durst not execute the writ aforesaid, and they drove him then and there with a multitude of rioters, with hue and cry out of the town, casting stones at the head of his men and servants to the pernicious example and contempt of the Lord the King and against his peace.”

What does loyal Lowestoft think of this behaviour of their old town's people, in almost the first scene in which they appear in the stage of history!! It is evident from this story that there were two classes represented in this riot, a large number of people men and women, who

took an active part in it, and several leading persons, the merchants probably of the period, who “procured and abetted” them.

The treatment which the king’s proclamation and the under-sheriff met with at Lowestoft, was duly inquired into by the sheriff, but we are not informed of the punishment enforced upon the rioters. The Lowestoft people, however, lost no time in making another appeal for the assistance of the Commons. On this occasion they were supported by the Commons of the county of Norfolk, as well as by those of Suffolk.

THE CHARTER REVOKED A SECOND TIME.

Another commission of enquiry was appointed in 1380 under the presidency of the Chief Justice Tresilian, who sat with his colleagues, representing Lowestoft and Yarmouth, one day at Norwich and on the second at Lowestoft, and heard evidence on behalf of each town. This Commission reported in favour of Lowestoft, and in the following year the Parliament, sitting at Westminster, repealed the grant, and the young king was compelled to follow the course taken by his grandfather, and declared his charter to be “revoked and utterly made void” (1381).

Yarmouth however had too much confidence in her claim on the Crown to give up the struggle, and the next year she again petitions the King to restore her charter.

THE CHARTER REGRANTED A THIRD TIME.

The young King now 17 years old, was so anxious to learn the merits of the important contest, that he himself paid a visit to Yarmouth in 1382. We do not hear that he came to Lowestoft, or that he ascertained the precise position of “the place called Kirkley Road.” He was probably shown the town walls, and the devastation caused by the plague, (which the Yarmouth people seem to have attributed to the repeal of their charter). He and his courtiers were feasted by the Bailiffs and Burgesses, with the same judicious munificence, with which 200 years afterwards they treated Leicester and the other noblemen of Elizabeth’s court, when she was staying at Norwich, and was invited to visit Yarmouth, under very similar circumstances. Richard was much impressed with what he saw and was

told at Yarmouth, particularly that “a great part of the people had left the town on account of their charter having been repealed,” and in 1384 he took upon himself to issue an ordinance re-granting the charter until the next sitting of Parliament.

THE CHARTER REVOKED A THIRD TIME.

In 1385 the Parliament met at Westminster. The Commons were still staunch in their support of Lowestoft, and the King was again compelled to revoke his ordinance, and to declare that all the charters given to Yarmouth by his grandfather and himself were utterly void.

A NEW CHARTER GRANTED BY RICHARD.

The next year, however, from causes of which we are not informed, we find that a great change took place in the conditions of the contest. In the Parliament of 1386 we find the Commons themselves supporting the cause of Yarmouth, and petitioning the crown to regrant their charter, notwithstanding the persistency with which they had opposed it in previous years. The King of course acceded at once to this petition, and a new charter was granted to Yarmouth, embracing all the provisions of the charter of Edward, and welding more tightly the fetters which were intended to crush the trade of Lowestoft.

This charter has never been revoked and in 1826 it was cited by the Town Clerk of Yarmouth before the committee of the House of Commons, when the Bill for making a harbour at Lowestoft was under consideration.

This game of see-saw between Crown and Parliament with reference to the Yarmouth Charter, was an episode in the struggle which was going on between these Powers during the whole of the 14th century and which forms an important chapter in our constitutional history. The result of the contest as regards the fortunes of the two towns would seem to have been a complete triumph for Yarmouth; involving restrictions on the trade of Lowestoft, which were intended to deprive it of any share in the herring trade, beyond the produce of their own fishing boats. This however was by no means the actual result. The obnoxious charter proved to be perfectly harmless to Lowestoft, if not entirely useless to Yarmouth. It was beyond

the power of Yarmouth to enforce it effectually. The statute of Herrings, forbidding the “forestalling” of the Free Fair by buying herrings from ships at sea, applied to the Yarmouth merchants as well as to Lowestoft men. The anomalous right given to the Yarmouth Bailiffs of exacting harbour dues from ships anchored in the sea, at a distance of several miles from their harbour mouth, must have been incapable of enforcement, without a fleet of armed bailiffs. It would appear that Yarmouth made little or no attempt to enforce the provisions of the charter against Lowestoft merchants buying herrings within the 7 leuca, and contented themselves with claiming harbour dues from the ships which discharged their herrings there. In this claim they had for some years the assistance of the Lowestoft merchants themselves, who undertook to farm the tolls of the town. They paid as much as £26 a year for these tolls in the years 1393–4–6. This blackmail was, however, soon reduced, and in a few years the task of collecting the tolls was left in the hands of the Yarmouth Bailiffs themselves.

In 1400 we find Yarmouth giving up altogether the attempt to enforce their charter, and entering into an agreement with Lowestoft, which gave express sanction to their purchasing herrings from ships lying off their shore. This agreement was entitled “An accord or composition between Yarmouth and Lowestoft that the latter might buy herrings in Kirkley Road upon conditions therein specified.” The Lowestoft merchants were allowed to buy fish from all ships that were not “hosted” to Yarmouth merchants i.e., from ships whose owners had not entered into engagements with Yarmouth merchants to sell their fish to them, or through them, as their agents (an arrangement, very necessary for foreigners in those days); and the Lowestoft merchants might buy also from these ships herrings which the Yarmouth “hosts” did not require for themselves, upon payment of half a mark per last to the hosts, in addition to the price of the fish. This “Composition” was formally sanctioned by the King in Council, and was issued by “Letters patent” in the 2nd. year of Henry IV. As we do not hear of any further litigation between Lowestoft and Yarmouth for 200 years, we may take it that the first contest between the two towns was closed by this agreement, whether this long truce was due to it, or to other causes.

Swinden in his history of Yarmouth ends here his story of “The Contest about Kirkley Road.” He promised another chapter in which he would have had to deal with the renewal of the contest by Yarmouth in the 16th and

again in the 17th centuries. This chapter was not written. He probably found a difficulty in treating the later episodes of the story, which must have been a very sore subject between the two towns even when he was writing.

Our interest in it is now purely archæological. The story though somewhat tedious cannot be dispensed with in a history of Lowestoft, any more than the ghost's story in Hamlet. It is the story of the growth of Lowestoft from a small village into a fishing town of some importance to the country. Her trade was probably growing rapidly during the whole period that the contest lasted. But from the beginning of the 15th century her merchants were free to take their full share in the herring trade, and in any other trade, which the position of the town would enable them to develop; though without a harbour, her merchants, whether as fishing adventurers, or as general merchants, must have had a very limited range for their enterprises.

PART III.—EVIDENCE FURNISHED BY THE LAY SUBSIDIES OF THE GROWTH OF LOWESTOFT.

Unfortunately the records of the contest between Yarmouth and Lowestoft furnish us with no information as to the actual wealth and population of Lowestoft at this period, and we have no local records to help us in forming an estimate of either. But we are not altogether at a loss for information on these important questions. Among the decayed and fragmentary relics of the old Lay Subsidy Rolls in the Record office, we have a complete detailed return for the 1st of Edward III., and another for the 15th of Henry VIII. If these Rolls do not furnish direct information as to the actual wealth and population of the town, a comparison between them furnishes good evidence of its relative status at these two periods.

Taking the Subsidy returns for 1327 from the same group of parishes, whose condition at the time of Domesday we have already noticed, we find that Yarmouth heads the list with a contribution of £18. 8. 1. Beccles follows, with a contribution of £12. 4. 9. Gorleston, with Little Yarmouth, comes next with a payment of £10. 0. 4. Then Kessingland follows with a payment of £4. 2. No other parish in the Hundred pays as much as £2. 10. Mutford, Belton, Carlton, and Corton pay £2. and upwards. Gisleham and Rushmere together pay £2. 10., and Pakefield and Kirkley are bracketed for

£2. 1. Blundeston pays £1. 18., Somerleyton £1. 17., Bradwell £1. 14., and Oulton and Flixton together £1. 15. *Then comes Lowestoft, with the humble contribution of £1. 9., gathered from 29 of its inhabitants.* Lound, Fritton, Hopton, Gunton, Herringfleet, Burgh, and Ashby complete the lists with sums rising from 16s. to £1. 8. We can but infer from these returns that Lowestoft had not yet made any substantial advance upon the position she occupied in the Domesday survey. The small contribution which she is called upon to make, compared with Carlton Colville and Kessingland, proves conclusively that at the beginning of Edward III.'s reign she had not developed any trade in herrings or any other merchandise. Thirty years after (as we have already seen) the little town was of sufficient importance to be honoured by the issue of a Royal ordinance authorising her people to buy and land herrings in Kirkley Road. We can thus fix the date of the origin of Lowestoft as a town, in the modern sense of the word, within a year or two. If the Subsidy Rolls for the rest of this and the succeeding reigns were not defective, we should probably find that the assessment of Lowestoft rose rapidly during the latter half of the 14th century, and continued to rise throughout the next century, and at least the first half of the 16th century, so that at the time of the second Roll she had reached nearly, if not quite her full growth as a town of ancient times.

In the Roll for 1525 we find Lowestoft occupying an entirely different position with respect to her agricultural neighbours. Instead of appearing as a poor village of less taxable capacity than Somerleyton and Blundeston we find her contributing a larger amount to the subsidy for this year than all the rest of the Lothingland parishes together, even including Gorleston and Southtown. *The contribution from Lowestoft is £29, just 20 times what it was in 1327.* This sum was collected from 140 of her inhabitants; but there is abundant evidence from other returns that the number of persons entered as contributories in these rolls did not represent the whole number of taxable people in the town and parish upon which the subsidy was charged. The sum claimed by the Sheriff had to be collected and paid in by the parish constables, who were themselves among the larger contributors, but it was left to them, with the concurrence of the people themselves, to arrange by whom and in what proportions each person should contribute to each subsidy. Taken year by year, the burden of these subsidies was probably fairly distributed. The richer inhabitants probably contributed to every

subsidy, but the power of excusal could be freely exercised by the constables in the case of the poorer townspeople. This subsidy roll not only gives us the names and payments of each contributor, but the assessment of his property on which he was charged. The total assessment amounted to about £760, of which £710 was on “movabyll goods,” and £50 on “wages and profits.” Among the higher assessments are:—John Hodden £100, Robert Bach £50, John Goddard £48, J. Jettor, jun. £48, Thomas Woods £40, William French £40, Robert Chevyr (one of the parish constables) £20. The other assessment range from £1 to £19. Sir John Browne—the Vicar—was assessed at £7. There is no assessment under £1. The number assessed at the lowest rate is 59:—23 are assessed at £2.

The name at the head of the list is John Jettor, jun. He had evidently been previously assessed at £100 or more. *He was only assessed on £48 for this subsidy, “the consideration for his decay being that he had lost a ship on the sea, pryce £50.”* As these assessments purported to represent the value of the “movabyll goods” *i.e.* all the personal property possessed by the contributors, and as the ship which John Jettor, junior, lost was valued at £50, *a larger sum than the rest of his “movabyll goods” were valued at,* we can form some idea of the amount of personal property possessed by the *richest merchants* of the town at this period.

We have another entry of a similar kind. John Robinson is only assessed at 40s. to this subsidy, because he had lost a ship valued at £28 “captured by the Scots.” We can only infer from this that this ship represented almost the whole of his property. We know from another record that at this time our merchants possessed 14 barks or doggers which used to go to Iceland to catch cod fish and ling, besides smaller boats employed in fishing near home. John Jettor’s ship was probably one of these barks, and John Robinson’s—a small fishing boat.

It is clear from these entries that at this time a ship represented a large part of the “movabyll goods” of our richer townspeople. The value of two barks would equal the highest assessment on this roll. When we consider the dangers these ships incurred, not only from the sea, but from the “Scots” and other occasional enemies, we can realise the precarious condition of the property possessed by these “fishing adventurers,” and of the town whose fortunes depended on the success of their enterprises. It may be inferred,

however, from this and other evidence that the assessments to the King's subsidies were very much of a conventional character. They doubtless represented the taxable capacity of the contributors relative to each other, but we may feel quite certain that they did not represent the full value of any persons property. The assessments were practically made by the townspeople themselves, and they would be each and all strongly interested in keeping the aggregate assessment at as low a figure as possible. At the same time, as the returns were subject to the inspection of the Sheriff, as well as the Exchequer Court in London, the range for imposition was limited. The contributions were assessed on the system of a "graduated income tax." Persons possessed of goods above £20 in value paid 1s. in the £. Those possessing "movabyll goods," or taxed on "wages and profits" under that amount, paid 6d. in the £. But the working men and fishermen who were assessed at only 20s. for "wages and profits" paid only 4d. No one was assessed at a lower sum than 20s. But 20s. could not represent the annual income of even the lowest paid labourer. According to Mr. Thorold Rogers the wages of the artizan at this time would be 3s. a week, or some £7 a year, and the wages of the agricultural labourer 2s. a week or about £5 a year. Even this would be much more than double the lowest assessment. We can hardly believe that the richer men undertook a much larger share of the burden than their property demanded, and we may reasonably infer that their assessments did not represent the full value of their property. But anyhow our richest merchants of those days must have been very poor men according to our modern ideas.

Lowestoft was of course still a very small town as compared with Yarmouth. As Yarmouth was exempted from all taxes during Henry VIII.'s reign on account of the expenses of her harbour, the Subsidy Rolls do not enable us to compare the wealth of the two towns. It was stated in one of their petitions about this time that a "whole Fifteenth" would amount to £100. Beccles was also at this time a much larger town than Lowestoft. In the Subsidy Roll for the previous year (1523) the town paid £73 13s. 4d., an increased payment, it is stated, of £33 4s. on a previous assessment. Beccles was evidently a rising town at this time, as well as Lowestoft. It was about this time, that the detached tower of Beccles church was begun: its building took 40 years. On the other hand Winterton, joined with

Lowestoft in the ordinance of Edward III., was already left far behind. Her contribution to the subsidy for 1524 was only £3 4s.

A MARKET HELD AT LOWESTOFT.

It was in the early part of the 15th Century that Lowestoft first possessed a market. William de la Pole, Earl of Suffolk, had succeeded John of Brittany in the ownership of the old Royal demesnes in Lothingland. He obtained a grant from Henry IV. to hold a market and two annual fairs in the town. The market was doubtless held in the “Old Market” Place, which still retains its title.

THE PARISH CHURCH.

It was undoubtedly at some time during this period, that is to say, during the 15th or the first half of the 16th century, that our present parish church was built, but we have neither record or relic to fix the precise date of any part of its structure. To a certain extent the church tells its own tale. The style of architecture of the nave and aisles prove them to have been built during the Perpendicular period; during which period nearly all the most beautiful churches in Norfolk and Suffolk were built. The unfortunate arrangement by which this grand specimen of a Perpendicular church was tacked on to the small tower of an older church, shows very clearly that the reconstruction of the body of the church was undertaken to meet the requirements of an increased population. From what we now know of the state of the town in the 14th century, we can hardly suppose that the rebuilding and enlargement of the older church took place so early; even supposing that its Perpendicular style would admit of its having been built in the latter part of that century. From the tradition of the existence of an old inscription in the church to “Robert Inglosse, *Esq.*, which died in anno 1365” (an evident misreading), Gillingwater and the Guide Books inform us that the church must have been built before that date—“probably soon after 1230”—a hundred years and more before the Perpendicular style was introduced. The existence however of tombstones, with inscriptions of the 14th century, in the new church, could easily be explained by their having been kept or re-placed in the new building. In order to explain the marvel that such a spacious and beautiful church should have been erected at such an early period, it has been customary to call in aid a purely imaginary

factor, and to attribute its building to the munificence of St. Bartholomew's Priory, to whom Henry I. had given the great tithes of the parish. In the 13th century these tithes were valued at seven marks, or about £14 of our present money. In the 14th, or even in the 16th century, the value of these tithes could hardly have increased to such an amount as would suggest to the most liberal-minded monks that it was their duty to build a church for the parish in return for the income they received from it. Dr. Jessop, in a recent article in the "Nineteenth Century," has ridiculed the notion of monks building parish churches; and certainly the connection between monasteries and parish church property does not favour the view that they often felt it their duty to apply these funds to the building of any other churches than those attached to their own abbeys and priories. Dr. Jessop's view is that our parish churches were built by the parishioners themselves. I assume that he would include in the "parishioners" the owners of property in a parish, whether resident or not. Where the founder's name has not been handed down to posterity this probably was the case, and from what we know of the condition of our old town in the time of Henry VIII., we can have no reason to doubt their ability to incur the expense at that period (great as the expense must have been, even when labourers' wages were at 4d. or 5d. a day), particularly when we bear in mind the powerful influence of the doctrine of good works in securing legacies for such an object. Nor was the new church built all at once. The aisles do not appear to have been built at the same time, and the chancel appears to have been an after addition, as well as the south porch.

OLD CHAPELS.

There appear to have been two chapels in the town at this time, which the people could attend while the parish church was closed—a very little one, the chapel of the "Good Cross" at the south end of the town, and a larger one in the centre of the town, which was replaced after the Reformation by a Protestant chapel. This chapel, after having been restored and enlarged in the 17th century, was in use until St. Peter's Chapel was built, when it was given over to secular uses, and has been since appropriated by our Corporation as their Council Chamber.

OTHER STRUCTURAL RELICS.

We have a few other structural relics still surviving in very much their original condition, which belong to this period—probably to the early part of the 15th century. These are the old vaulted cellars, which are to be seen under houses near the Town Hall. There is nothing in these structures to fix precisely the time when they were built; but they have all the character of the 14th and 15th centuries. The bricks of which the groins are made are small and roughly moulded, and would appear to belong to an early date after the revival of brick-making—a trade which seems to have been beyond the capabilities of our ancestors from the time the Romans left the country to the beginning of the 14th century. The bricks in these cellars are similar to those which are to be seen in the Yarmouth walls, which we know were placed there in 1336, and which we are informed by old records cost 20s. a last—the cost of two bricks being equal to that of one red herring at the time. There are vaulted cellars under old houses in Norwich very similar to those at Lowestoft. A large cellar of this kind is to be seen in good preservation under the house known as “The Old Bridewell,” it having been used until comparatively recent times as an underground prison. This house was built by William Applegard, the first Mayor of Norwich, in 1404. The Lowestoft cellars were evidently the basements of separate houses; although near each other they are entirely disconnected. They are much smaller, and the groins less strongly constructed than those in the Mayor’s house at Norwich. The houses above them would also have been much smaller. The doorways into these cellars are arched, and not very long ago an ancient house was in existence above one of these cellars. This house had an arched doorway, which with the vaulted cellars underneath—so like the crypts of old churches, induced the belief that these houses had a monastic or ecclesiastic origin. The doorways in the Mayors house at Norwich were of the same form. Such features were common in houses of this period, and in no way imply any monastic origin. We cannot infer from the three specimens of these cellars that survive, that there were many houses of this character in our old town, nor from what we know of the wealth of our merchants at this time, can we suppose that there were many who could indulge in expensively-constructed cellars, however convenient they might be for storing their “movabyll goods.”

We know well that Lowestoft in these old days was not what we see now, but it is as difficult to substitute any clear idea of what she was, as for a

grown up man to picture himself when running about in a short frock. In order to form a tolerably correct idea of what our old town was at the beginning of the 15th century, we must dismiss altogether from our mind's eye the large populous town with which we are acquainted, and picture to ourselves a village of small cottages with thatched roofs being gradually improved by the erection of houses of a better class. At the early part of Henry VIII.'s reign Lowestoft appears to have been a small town on the cliff, containing some 20 or 30 merchants—in a very small way of business—the richer men among them owning one or two ships; most of them having fish-houses at the bottom of the cliffs, and doing a good deal of business during the autumn season in buying fish from the foreign and west-country fishermen in the Roads, and selling it to fish merchants coming from inland towns. They would also be doing a little business with their visitors in light merchandise, which could be brought in the fishing boats, or taken away after the season was over. Profit would also be made during the season in victualling the visitors' ships. A few handicraft tradesmen and shopkeepers and a number of working men and sailors would complete the adult population. In fact the town would be very much what it was some 60 years afterwards in Elizabeth's time, which will be the subject of our next lecture.

LECTURE III.

LOWESTOFT IN ELIZABETH'S TIME.

PART I.—THE PARISH REGISTER.

PART II.—LOWESTOFT AND YARMOUTH AT THE END OF THE XVI CENTURY.

PART I.—THE PARISH REGISTER.

Much light has been thrown on the character of Lowestoft some 300 years ago by the copies of the parish register, published in the "Parish Magazine," which, I doubt not, many of you have been in the habit of studying. The existing parish register dates back to 1561. The first volume of the book, so to speak, which would tell us who were living or dying in Lowestoft in the reigns of Henry VIII., Edward VI., and Mary, was unfortunately burnt in the fire which destroyed the old vicarage house in 1606. The register was kept from 1561 to 1583 by Mr. Benjamin Allen, the parish clerk. From this year to the end of our period it was kept by Mr. Stephen Philip, the first master of Mr. Annott's school, of whom we shall speak again soon. Mr. Allen was probably one of the few persons in Lowestoft at the time who could write—at least, well enough to undertake such an important and responsible task. I cannot say much for his spelling, but variety rather than uniformity in spelling was as yet a fashion of the day. He belonged apparently to one of the upper, or as they would have said, one of the "bettermost" families in the town, which produced one of our naval heroes of the following century.

But Queen Elizabeth's reign was long long ago. We know from books the principal events of her reign, as we do of some period in Roman or Grecian History. But we know little of the people, although we are of the same flesh and blood, and indebted to them for much that we now enjoy. Elizabeth's reign covered the first 42 years of our Parish Registers; and the materials for this lecture will belong almost entirely to this period.

As a stepping stone however and introduction to our subject, I propose to read to you a few lines from an account of a tour in these parts taken by a young lady about 200 years ago; a hundred years later than Elizabeth's time. This lady was Miss Celia Fiennes, a daughter of Lord Saye and Sele. She appears to have been quite a "new woman" of the 17th century, and, I think I may safely say, the first lady who ever travelled through England as a tourist. She rode on horseback. She did not ride a bicycle for two reasons—first, because they were not made then; and secondly, because if they had been, there was no road on which they could have run a yard. This absence of roads is an important point to bear in mind, for it had much to do with the difference in the habits and character of these old people and of ourselves. Miss Fiennes rode along the roads and lanes, such as they were, accompanied by two male servants, and stayed at inns and country houses. In her tour through Suffolk and Norfolk she came from Ipswich, through Saxmundham, to Beccles, and this is a little of what she tells us about her journey:—

"Thence to Saxmunday, eight miles more. This is a pretty big market town. The wayes are pretty deep, mostly lanes, very little commons. I passed by several gentlemen's seats. So to Bathford (she meant Blythburgh), eight miles, where is the remains of the walls of an abbey, and there is still a very fine church, &c. Thence I paused by some woods and little villages of a few scattered houses, and generally the people here are able to give so bad a direction that passengers are at a loss what way to take. They know scarce three miles from their home, and meete them where you will, and enquire how far to such a place, they tell you so farre, which is the distance from their own homes to that place. To Beccle is eight miles more, which, in all, was 36 miles from Ipswich, but exceeding long miles. They do own they are 41 measured miles. This is a little market town, but it is the third biggest town in Suffolk—Ipswich, Berrye, and this. There are no good buildings in the town, being old timber and plaster work, except Sir R. Rich's, and one or two more. There is a bigg market Kross and a market kept. At the town's end one posses over the river Waveney, on a wooden bridge railed with timber, and so you enter into Norfolk. Its a low, flat ground all here about, so that at the least rains they are overflowed by the river, and lie under water, as they did when I was

there; so that the road lay under water, which is very unsafe for strangers to pass, by reason of the holes and quick-sands and loose bottom.”

If the houses in Beccles, and the roads across the marshes were as she describes them in the reign of William and Mary, we may be quite sure that they were no better in the time of her great grandmother. We will imagine a traveller of this still more ancient time arriving at Beccles on his way to Norwich, and who finding the road across the marshes to Gillingham quite impassable from the floods, determined to make a detour and pay a visit to Lowestoft.

In travelling from Beccles to Lowestoft, our ancient visitor would have no dangerous marsh roads to travel on. He would ride along on the high ground which skirted the fenlands on the north, on a road or trackway which had been used for hundreds of years before, probably by Britons, Romans, and Saxons, and which was the connecting link between Lothingland and Suffolk; the road that still leads over the narrow ridge or neck between Lake Lothing and Oulton Broad through Oulton to Burgh Castle and Gorleston.

When our ancient visitor arrived at this spot, he would find a narrow raised “causey,” as he would call it, (or as we still more erroneously call it “causeway”) and a bridge, ^[57] the first bridge built over the little gap which used to be known as the “mud ford,” and from which the bridge took its name. Taking a survey from this point, he would see on his left Oulton Fen, as it was then called, a watery wilderness of reeds and bogs, much valued by the sportsman and poachers of the period for fish and wildfowl, and undisturbed by wherries or any craft beyond the fisherman’s punt. On the right would be Lake Lothing—the “fresh water,” as the Lowestoft people then called it, a long, river-like piece of water, with deep margins of reeds and rushes, and as full of fish as Oulton Fen, with which it was connected. Turning off the main road, into the road leading to Lowestoft, he would soon come to Normanston—very much then, I expect, what it is now. The gentleman living in it then was apparently Mr. Mason, Churchwarden in 1575. Several persons appear in the register as servants of Mr. Mason buried during our period. Further on he would see the farm by the church, much the same as now, except in the character of the buildings, and then the

church—very much, indeed, the same, except that it was then in very bad repair. It probably had not been restored since it was built some 100 years or more before. In 1592, in the latter part of our period, the inhabitants undertook the task of repairing it, at the expense of some £200. The churchyard would be much the same—quite full of graves—but with few headstones. Close to the churchyard our ancient visitor would see the old vicarage, which was burned down in 1606. It was occupied during the first part of our period by Mr. Nayshe, the minister of the parish, and afterwards by Mr. Bentley, the Vicar of whom I shall tell you more soon. Close to the Vicarage our visitor would see Annott's School house, in which Mr. Philip—"Mr. Annott, his schoolmaster," as he was always to be called according to the deed of endowment, was then living, of whom also more soon. This house has also long since disappeared. He would then reach the town, passing from Church Road into what was then Swan Lane (now Mariners' Street). Arriving at the High Street he would dismount at the Swan Inn, on the opposite side, next Swan Score (now Mariners' Score), and now represented by two houses, Mr. Abel's and Mr. Shipley's.

The Swan Inn was a very interesting old house. It had been built on the foundations of a much older house, which had one of those cellars with groined roofs already noticed, which still remains. When this old house was converted into an inn, an opening was made from the cellar into the street for beer barrels to be let down, with brick steps, still remaining.

THE TRADES OF THE TOWN.

Having given his horse into the care of the ostler, our visitor would enter the Swan and order dinner, unless he had dined at Beccles before starting. People dined at 10 and 11 o'clock in the morning in those days. After dining he would probably question his host about the town, its size, character and principal residents—its trade, population, &c. He would have liked much to be furnished with a guide to Lowestoft, but there was no Mr. Arthur Stebbings or Mr. Huke in those days to supply him with anything of the sort. We, however, with the register before us, are able to gather a great deal of the information which our ancient visitor wanted. If we cannot make out a complete Directory, we can make out a fairly complete list of the trades and occupations of the inhabitants during our period, and of the names of many of the persons belonging to each.

We find some 45 different trades or occupations mentioned as being carried on in the town. The number of different persons and families mentioned as belonging to them would, generally speaking, vary in proportion to the number actually engaged in each trade during the period. I would observe, however, that it was not the duty of Mr. Allen and his successors to add the trade or occupation of persons whose names he entered, but they seem to have made a common practice of doing so, though in an imperfect and unsystematic manner. In by far the larger proportion of entries no description appears, and although many of these entries refer to the families of persons previously described, a great many names appear throughout our period without any occupation being assigned to them.

I will first give you the number of different persons mentioned as belonging to these different trades and occupations. You will not be surprised to learn that the most numerous class were the “mariners,” as they were called in the earlier years; and afterwards “sailor,” and then “seamen.” Only one person appears as a “fisher.” This class numbered 77. The next largest class you will be surprised to hear were the tailors, of whom there were thirty-nine. Then came labourers 39, butchers 20, smiths 13, carpenters, joiners, and sawyers 12, masons 12, weavers 12, shoe makers, cordwainers, and cobblers 11, shipwrights 10, coopers 10, millers 11, brewers 6, bakers 4, tanners 4, knackers 2, ropemakers 4, drapers 2, chimney sweeper 1, glovers 3, tinkers 2, carters 2, husbandmen 2, gunners 1, neatherds 2, shearers 2, hokemaker 1, currier 1, glazier 1, dyer 1, hostler 1, fisher 1, fletcher 1, innkeeper 1, hatter 1, ploughwright 1, wheelwright 1 and 2 towers. There was a pewterer and a goldsmith, and we have 12 persons entered as “gentleman” or “gent,” and nine persons are described as “merchant.” Four persons are named as “minister” only two of whom were ministers of the parish. One person only is described as schoolmaster—Mr. Stephen Phillip, of Annott’s School, and one person as a “good school dame.” One person is described as a “surgeon,” and one as a “proctor.” Lastly there are 30 names of “servants” who apparently died in their masters’ houses in the town. Many of these were females, apparently domestic servants. The male servants were probably employed in services connected with their masters’ occupation.

Now, if we look a little closely into these lists, and combine the information they furnish with what we can glean from other sources, we can bring the

old town very much to life again, and in some matters should be able to tell them a good deal more about themselves than they knew.

THE VICARS.

To commence with the Church; we find that the “minister” of the parish, during the first 16 years of our period, was Mr. Nayshe. He was not the Vicar. The Vicar was Mr. Thomas Downing, who was also the Rector of Besthorpe, near Attleborough, in Norfolk. He was allowed to hold the Vicarage of Lowestoft (as stated in the register) to make up for the small income of Besthorpe—a most scandalous arrangement surely—a populous town deprived of its proper clergyman for the sake of improving the income of the rector of a small country parish far away in another county. The arrangement, however, was made in the Roman Catholic days of Queen Mary; three years before Queen Elisabeth had re-established the Protestant religion in the country. The Bishop of Norwich, who allowed it (he did not nuke the appointment himself), was the notorious John Hopton, described as a most sanguinary persecutor of the Protestants. Witness the burning of three men at Beccles as recorded on the tablet on the Meeting House in the road leading from the Station to the Market Place; and of many others in the Norwich Diocese. It was probably a happy thing for Lowestoft that Bishop Hopton did not make this appointment. It was said that when Elizabeth came to the throne Bishop Hopton died from terror of her taking vengeance on him for his cruelty to her co-religionists. What Mr. Nayshe’s views were, we know not, but he appears to have been a good Protestant during the 13 years of his ministry under Elizabeth. He must have been the first minister of the parish for many hundred years who was a married man. He lost his first wife soon after coming here, and then married, apparently, a Lowestoft lady. He was succeeded in 1574, by Mr. William Bentley, who was duly appointed vicar by the new Bishop of Norwich, Dr. Parkhurst. He also married twice; his second wife being the widow of Mr. John Arnold. He held the living to the last day of our period, when he apparently fell a victim to the terrible epidemic of that year. The entry of his burial appears in the register in large letters—“Mr. Willyam Bentlye, Pastor,” one of the 55 of our old townspeople who were buried in the month of August in this year.

There are two other persons described as “ministers.” They could hardly be Protestant Nonconformists in these early days. The first dissenting chapel in Lowestoft was not built till quite a hundred years after (1695). These “ministers” out of office were not improbably clergymen who were too much attached to the old religion to accept appointments under the new regime.

I think we may pay Mr. Philip, Mr. Allen’s successor as Registrar, the compliment of mentioning him next. He was not only Parish Clerk and Registrar, but he was also “Mr. Annott his schoolmaster” for 18 years during our period. He was appointed by Mr. Annott himself, and held the office under the deed of endowment after his death. His salary was £16 a year—not a high one for a man required to teach Latin and grammar to 40 boys, and to receive no other payment beyond twenty pence for each new boy. From the entry in the register of the burial of an old lady described as a “good school dame,” we may infer that there was at least one dame’s school in the town besides Mr. Philip’s high-class academy.

The number of persons entered in the register as merchants and gentlemen, and the number keeping servants, both male and female, is evidence of there being a good proportionate number of “bettermost folk” residing in our town. Although probably of a less importance to the town than the merchants and tradesmen, the fact of its being frequented by a considerable number of persons of independent means and of a social position to justify their being entered with the title of “Mr.” or with the description of “gentleman,” is very noticeable, and would seem to imply that even in these ancient days Lowestoft had acquired some reputation as a health resort, or as a pleasant retreat for gentlemen of no occupation. We find 14 or more names of persons of this class entered in the register—Fenn, Ruston, Karwell, Bramton, Bright, Paine, Kene, Rowse, Fooks (“gentleman soldier”) Brigge Beaching (“a gentleman from Sussex”) Mason Scrasse (“a gentleman soldier from Sussex”) Bentlye, Walker. I am inclined to think that some of these were lodgers. The persons mentioned as merchants bore the names of Mighells, Green, Grudgefield, French, Annot, Wilde, Cooke, Burgess, and Coldam. We know, however, that several other persons whose names appear without any description were engaged in business as merchants, and occupied high positions in the town at this period.

THE FISH TRADE.

From other information it appears that several of these merchants, if not all, were engaged in the fish trade and were owners of fish houses, at the bottom of the cliff, still represented by buildings occupying the same sites.

At a meeting of the inhabitants in the year 1596, called to consider a proposal to take some of the rents of the Town Lands to defray the expense incurred in litigation with Yarmouth about the herring fishery, it was stated that out of 200 persons who reaped advantages from this fishery, many were unable to contribute towards the above expense, and that if the fishery was not supported, the town would inevitably be ruined. It appeared that before this meeting, the inhabitants (probably the merchants referred to above), had already subscribed £120. This statement is at once evidence of the importance of the herring trade to Lowestoft at this period, and at the same time limits the number of merchants, fishermen, and other persons employed in it, to 200. Assuming this number mainly represented heads of families, we should have some 900 persons or about half the population of the town dependent on the herring fishery. Some of these merchants doubtless owned ships, but it appears from other information that the number of fishing boats then belonging to Lowestoft must have been very few, probably 20 at the outside. We find it stated, some 100 years after, in a petition to Charles II., that the number of Lowestoft ships engaged in all the several voyages in the year was 25. Previous to Elizabeth's reign, Lowestoft used to send several ships to Iceland in the spring to catch ling and codfish. You have already heard that as many as 14 ships were employed in the time of Henry VIII. in this fishery. The dissolution of monasteries and the neglect of the rules as to fasting, introduced by Protestantism, appears to have affected the trade in salted codfish very seriously, and we find it stated that in 1566 the number of Lowestoft Boats going to Iceland was reduced from 14 to 1.

PIRACY AT LOWESTOFT.

The decay in the fishing trade, as regards the employment of English ships and sailors, was not confined to Lowestoft. It was felt in every English port in the West as well as on the East Coast. Protestantism in the main meant progress and commercial activity, but it did not mean this with our

fishermen. If eating fish on Fridays and Saturdays was still inculcated as a duty by Elizabeth's Government and Elizabeth's Church, the mass of the people were too strongly Protestant to pay much respect to a rule which was an essential feature in the old religion, if their antipathy to Papism did not even cause an antipathy to fish eating at any time, particularly salt cod. At all events, there was such a diminution in the demand for salt fish as to throw a large number of sailors previously engaged in fishing voyages out of employment, and to leave this occupation almost entirely in the hands of the French and Dutch. The English sailors, at least a great many, found employment of a more exciting and remunerative character, as privateers—in other words, buccaneers, pirates, or sea robbers. Our Protestant sailors in Elizabeth's time considered themselves as doing God's work in robbing and scuttling any merchant ship belonging either to France or Spain which they could come across on the high seas; nor were they always very particular as to either the nature or the religion of their victims.

You will not think that this reference to the piratical practises of our seamen in the early part of Elizabeth's reign is foreign to our subject—when I tell you that Mr. Froude has given a story of piracy at Lowestoft in 1561, as an illustration of its prevalence. He thus tells the story:

“A Flemish trader has sailed from Antwerp to Cadiz. Something happens to her on the way, and she never reaches her destination. At midnight carts and horses run down to the sea over the sand at Lowestoft. The black hull and spars of a vessel are seen outside the breakers, dimly riding in the gloom, and a boat shoots through the surf, loaded to the gunwale. The bales and tubs are swiftly shot into the carts. The horses drag back their loads, which before daybreak are safe in the cellars of some quiet manor-house. The boat sweeps off, the sails drop from the mysterious vessel's yards, and she glides away in the darkness to look for a fresh victim”—MSS. Elizth. Vol. XVI.

He gives his authority for this story, and there must have been some foundation for it. I am afraid that some of the mariners whose names appear in our register must have been on board this black ship; but I refrain from offering any conjecture as to which of the quiet manor-houses in our neighbourhood was the depository of the spoil.

Piracy by British seamen was at this time sufficiently common to call for the interference of Parliament. It exercised much the mind of our then Prime Minister Sir William Cecil—who held the same great office under Queen Elizabeth that his descendant, our present Prime Minister, holds under Queen Victoria. From his private memoranda on this matter we may notice the following as directly bearing on our subject. He writes—

“Instead of the Iceland fleet of Englishmen, which used to supply Normandy and Brittany, as well as England, 500 French vessels, with 30 to 40 men in each of them, go annually to Newfoundland, and even the home fisheries have fallen equally into the hands of strangers. The Yarmouth waters (which certainly included the Lowestoft) were occupied by Flemish and Frenchmen. As remedies for this evil he mentions—(1) Merchandise, (2) Fishing, (3) *The exercise of Piracy, which was detestable, and could not last.*”

Sufficient evidence this of the extent to which our seamen had taken to piracy at this time. However detestable our Prime Minister thought it, he did not, or could not, stop it. It went on more or less throughout Elizabeth’s reign. Our sea-warriors who defeated the Spanish Armada in 1588, were most of them the crews of these “pirate” ships, who for once at least, indulged their fighting propensities in the best service of their country.

The only remedy at the time that Cecil could think of was an Act of Parliament to compel people to eat fish. In 1562, Mr. Froude tells us, he brought a bill into the House of Commons to make the eating of flesh on Fridays and Saturdays a misdemeanour, punishable by a fine of £3, or three months’ imprisonment, and, as if this was not enough, adding Wednesday as a subsidiary or half-fish day, on which one dish of flesh might be allowed, provided there were served at the same table and the same meal three full competent usual dishes of sea fish of sundry kinds, fresh and salt! The House of Commons, Cecil admitted, was very much against him. He carried his measure only by arguing that, if the Bill was passed, it would be almost inoperative:—labourers and poor householders could not observe it, and the rest by license or without license would do as they would; while to satisfy the Puritans he was obliged to add the ludicrous provision that—

“Because no person should misjudge the intent of the statute which was politicly meant only for the increase of fishermen and mariners, and not for any superstition in the choice of meats, whoever should preach or teach that eating of fish or forbearing of flesh was for the saving of the soul of man, or for the service of God, should be punished as the spreader of false news.”

The Act was passed, but it does not seem that it had more effect than was expected in either improving the fishing trade or in stopping piracy. ^[66]

That it was not, however, altogether a dead letter, and that “Cecil’s Fast,” as it was called, was observed by many of the less strongly protestant of the Queen’s subjects, appears from the following curious old poem which was evidently written soon after the passing of the act. It shews to what a large extent fish had entered into the dietary of a Suffolk farmer in Catholic times, and which the writer recommends to be continued in accordance with the Law.

It was written by Thomas Tusser, the “Suffolk Blomfield” of the 16th. century. After being a chorister in St. Paul’s Cathedral, and employed in some office at Court, he retired into the country and took a farm at Cattiwade on the Stour. His occupation provided him with material for his muse, but did not improve his fortune.

A plot set down for farmer’s quiet,
As time requires, to frame his diet:
With sometimes fish, and sometimes fast,
That household store may longer last.

Let Lent, well kept, offend not thee,
For March and April breeders be.
Spend herring first, save salt fish last,
For salt fish is good, when Lent is past.

When Easter comes, who knows not than, ^[67a]
That veal and bacon, is the man, ^[67b]
And Martinmas beef doth bear good tack,
When country folks do dainties lack.

When macrell ceaseth from the seas,
John Baptist brings grass-beef and pease,
Frosh herring plenty, *Michell* ^[67c] brings,
With fatted crones, and such old things.

All Saints do lay for Pork and souse, ^[67d]
For sprats and spurlings for their house.
At Christmas play and make good cheer,
For Christmas comes but once a year.

Though some then do as do they would,
Let thrifty do, as do they should.
For causes good so many ways,
Keep emberings ^[67e] well, and fasting days

What law commands we ought t'obey,
For Friday, Saturn, and Wednesday.
The land doth will, the sea doth wish,
Spare sometimes flesh and feed of fish.
Where fish is scant, and fruit of trees,
Supply that want by butter and cheese.

THE REGISTER CONTINUED.

To return to our register, the 200 persons said to be dependent on the herring fishery, in 1595, must have included a great many of the persons entered in our list as mariners. They would embrace all classes from the skipper to the cook—sea captains like the Allens and Ashbys, and Utbers of the next century, and fighting Jack Tars, who had helped to man the ships under Howard and Drake, when they drove the Spaniards past Lowestoft in their flight to the north. Many of them would be long-shoremen, gaining a livelihood by fishing near shore, as now, and occasionally finding very profitable employment in connection with the wrecks, which were far more frequent then than now.

OTHER TRADES CONNECTED WITH THE FISHERIES.

Besides the merchants and mariners directly engaged in the fisheries, there were several other trades supported more or less by the shipping business.

There are as many as ten different names of shipwrights in the register; showing that ship and boat building was carried on at this time in the shipyards under the cliff, notwithstanding the proximity of Yarmouth. The six brewers probably depended largely for the sale of their beer upon the fishing boats and other ships visiting our roads. It appears that there was an enormous quantity of beer taken on board of our fishing boats in these times; so much that we cannot help suspecting that it was used as an inducement to attract men on board. Beer was of course very cheap, not more than a farthing and halfpenny a quart. From an estimate given by some shipowners in 1670 of the quantity of beer required for a fishing boat, it appears that each man was supposed to drink a gallon of beer a day (putting the number of the men at 10). The coopers also were evidently very closely connected with the fishing business. On a later occasion, some hundred years after our period, when Lowestoft had had another bout with Yarmouth about the herring fishery, and the town had a heavy lawyers bill to pay, they decided to defray the expense by a tax on herrings, and a supplementary tax on the brewers and coopers of the town. The butchers, of whom the large number of 20 names appear in the register during our period, probably did a good deal of business in supplying meat to ships. Meat was also very cheap at this time, and was probably eaten far more generally, and in greater quantities, than now. The number of bakers mentioned, 4, is very small, but the 11 millers, though not implying that there were 11 windmills (although probably there were nearly as many—they would be much smaller than our present windmills) implied a large consumption of flour. Lowestoft people doubtless baked at home. The hokemaker, doubtless had a good trade in supplying hooks for sea fishing, as well as for catching fish in the “fresh water.” The tower was a man skilled in “hanging” herrings in the curing-house.

OTHER TRADES.

Besides these trades connected with our fishing and shipping business, there are several others, which show that Lowestoft was much resorted to as a shopping town by the inhabitants of the neighbourhood. In these trades we must observe the enormous number of tailors—no less than 39. Lowestoft tailors probably met the requirements of the inhabitants of all the Lothingland parishes, and other parishes near. Doubtless they had got a

reputation for a better cut than the tailors of either Yarmouth or Beccles; or was a trade in ready-made clothes carried on here? These men, were of course, all journeymen tailors. The materials were probably supplied by some of the merchants mentioned, from Norwich or elsewhere. The persons mentioned as shoemakers, cordwainers, and cobblers (11) are comparatively few. These names represented the same trade with different pretensions. The presence of a tanner and currier implies that there was a sufficient demand for leather to maintain these two wholesale trades. The tanners may have also found employment in tanning fishing nets—as at the present day. No less than 12 weavers are mentioned; they were probably introduced from Norwich, which was at this time the principal seat of the woollen and linen manufacture in the kingdom. The clothes of some at least of our townspeople were not only made up by Lowestoft tailors, but of Lowestoft cloth and Lowestoft homespun. Other trades are mentioned connected with the supply of wearing apparel, viz.: drapers, glovers, hatters, and dyers.

The building and mechanical trades are represented by the carpenters, joiners, and sawyers, the masons (bricklayers were not distinguished from masons as yet), the smiths, the plough-wrights, and the wheelwrights. These tradesmen probably all found employment among the farmers and squires in the neighbourhood as well as in the town—as also the “knackers” (or harness makers)—the tinkers—and the thatchers (“thacsters” as it was spelt). The houses both in town and country and nearly all our churches were thatched at this time, and reeds were abundant on the side of Lake Lothing.

The presence in our town at this time of two such trades as the goldsmith and the pewterer is very noticeable. The goldsmith was at this time the prince of tradesmen, soon to develop into the banker of after times. His presence certainly implied the existence of several persons in the town or immediate neighbourhood of sufficient means to be the purchasers of gold and silver ornaments, while the presence of the pewterer implied that our town was up to date in the matter of table furniture, and that pewter plates and goblets had been substituted in many of our houses for the wooden trenchers and horn drinking cups of older times. ^[70]

The fletcher—or maker of bows and arrows—represented a trade soon to become obsolete, except for supplying bows and arrows for the sport of archery, which was very much in fashion at this time and took the place of cricket and football matches of our day. Pistols and arquebuses were already in use as firearms for military purposes, and fowling-pieces were beginning to be used by sportsmen, who could afford to buy them. We have evidence of their having already reached Lowestoft in the entry of a burial of a person who “met his death with a gun.” Bows and arrows, were, however, not altogether discarded for military purposes. In 1569. Elizabeth sent an order to Yarmouth to provide 50 bows and 50 sheaves of arrows, amongst other preparations to be made against the coming war with Spain, or France, or both together, with which England was threatened all through Elizabeth’s reign; and in the reports to the Government of the piratical proceedings of our sea hawks (which we have spoken of before) we hear of a case where they attacked their quarry, not only “by shooting of cannon at them, but by firing at them flights of innumerable arrows.” Bows and arrows were probably still to be found in the houses of farmers and peasants in Lothingland, to be used for sporting as well as fighting purposes. The Queen herself was very fond of hunting, and often shot small deer with the long bow, as well as with the arblast or crossbow.

The person described as a Proctor must have been a local lawyer, affiliated to Doctors’ Commons, and endowed with some special authority in the matter of wills. Only one person’s name appears in our period described as a surgeon. He died in 1585, one of those terrible years when Lowestoft was visited by the plague or some infectious disease, to which he apparently fell a victim. We only notice the name of one chymney-sweeper. There may have been more. But as we shall see further on, chimneys were only now coming into fashion and were as yet only to be found in the newer or best houses.

This sketch, imperfect as it is, of the trades and occupations of the inhabitants of our town, will, I think, leave no doubt in your minds that Lowestoft was at this time a very respectable little town—well represented by residents of every grade in the social scale—and frequented by the inhabitants of Lothingland, and the adjoining parishes in the south, for shopping and business purposes. Indeed, that the neighbourhood was more dependent on Lowestoft for shopping purposes than now, we can

understand, when we bear in mind the absence or extreme badness of the roads, which rendered communication with any town beyond Beccles difficult and expensive. Yarmouth was not far off; but Yarmouth although richer and more populous, could not afford counter attractions to Lowestoft as a shopping town, at all events for the residents on the Suffolk side of the water.

LOWESTOFT AS A MARKET TOWN.

Lowestoft had been a market town for more than a hundred years, but it does not appear that the market was ever much of a success. There was no large population like that of Yarmouth requiring a large supply of provisions and vegetables in addition to the produce of the townspeople's own gardens and the neighbouring farms. Nor could a place with only half the environment of an ordinary inland town be a convenient centre for the sale of general agricultural produce, particularly with another large market at Beccles.

POPULATION.

While furnishing information as to the character of the town, the register supplies us with trustworthy evidence of its size and population in Elizabeth's time. A comparison of the numbers of marriages, christenings, and burials for the two periods of 21 years comprising our period, shows no evidence of increase during Elizabeth's reign, while a comparison of the entries in this period with the corresponding entries for the 21 years, 1754–1774, shows that there was no material increase in the population after a lapse of some 200 years.

	Marriages.	Christenings.	Burials.
1561–1581	278	1,033	923
1582–1602 ^[72]	295	973	1,052
1754–1774	321	1,276	1,010

We know from actual survey that in 1775 the population was 2,235, and the number houses 445. This population, compared with the number of burials

shown above, gives a death-rate of 21 per 1,000. The mortality in Elizabeth's time was probably much higher. Putting it at 26 per 1,000, the average number of burials stated above would represent a population of about 1,800. I think we may regard this number as a safe estimate of the population of our town during Elizabeth's time, and that the number of houses would be about 360. In 1801 the population was 2,332, and I am inclined to think that there was very little difference in the size and character of our town in the 16th century compared with what it was at the beginning of the present century.

DUTCH REFUGEES.

We cannot pass from this part of our subject without noticing an interesting episode in the history of the town which belongs to this period. About the year 1571 the resident population of Lowestoft was temporarily enlarged by the hospitable reception of a number of "Dutch Folk," as they are called in the register. These were refugees from the Low Countries, who sought shelter in this country, at the invitation of Elizabeth, from the ruthless persecution of the Duke of Alva. Thousands of these Protestant refugees were admitted into English towns—some 4,000 into Norwich. Swinden gives us a copy of a letter of Elizabeth written in 1568 to Yarmouth, asking them to admit 30 Dutch families to the privileges of their town. Whether a similar letter was written to Lowestoft we know not, but it is evident from the register that quite as large a number as this must have found asylum here, and made it their home for some three or four years. Marriages, christenings, and burials of "Dutch Folk" appear frequently in the register during these years, and the fact that among the burials for one year (1573) no less than 10 Dutch names appear, shews that there were a considerable number then living here. Among the names are some that seem to belong to families of rank. They left about the year 1574, when Alva had been recalled; and when the terror of his executions had been replaced by a patriotic eagerness to take part in the war which was soon to result in the Freedom of the Netherlands.

The following account of the home comforts enjoyed by the less wealthy of our ancestors in the early part of the 16th century, as compared with the incipient luxury of the Elizabethan age, is given us by the author of the "Chronicles of Holinshed," who lived during this period.

“Neither do I speak this in reproach of any man, God is my judge; but to show that I do rejoice rather to see how God has blessed us with His good gifts, and to behold how that in a time wherein all things *are grown to most excessive prices* we do yet find the means to obtain and achieve such *furniture* as has been heretofore impossible. There are old men yet dwelling in the village where I remain which have noted three things to be marvellously altered in England within *their sound remembrance*. One is the multitude of *chimnies lately* erected; whereas in their young days there were not above two or three, if so many, in most *uplandish towns of the realm* (the religious houses and manor places of their lords always excepted and peradventure of some great personage), but each made his fire against a reredos in the hall where he dined and dressed his meat. The second is, the great amendment of lodging, for, said they, our fathers and we ourselves have lain full oft upon straw pallets covered only with a sheet, under coverlets made of dogswaine or hop harlots (I use their own terms) and a good round log under their heads instead of a bolster. If it were so, that the father or good man of the house, had a mattress or flock bed, and thereto a sack of chaff to rest his head upon, he thought himself to be as well lodged as the lord of the town, so well were they contented. Pillows said they, were thought meet only for women in child bed. As for servants, if they had any sheet above them it was well, for seldom had they any under their bodies to keep them from the pricking straws that ran oft through the canvass, and rased their hardened hides. The third thing they tell of, is the exchange of treene platters (so called I suppose from tree or wood) into pewter, and wooden spoons into silver or tin. For so common were all sorts of treene vessels in old times, that a man should hardly find four pieces of pewter (of which one peradventure a salt) in a good farmer’s house.”

Chapter XVI. “In times past men were contented to dwell in houses built of sallow, willow &c., so that the use of the oak was in a manner dedicated wholly unto churches, religious houses, princes’ palaces, navigation, &c., but now sallow &c., is rejected, and nothing but oak any where regarded and yet see the change, for when our houses were builded of willow then had we oaken men, but now that our houses are come to be made of oak, our men are not only become willow, but a

great many altogether of straw, which is a great alteration. Now have we many chimnies and yet our tenderlings complain of rheums, catarrhs and poses; then had we none but reredosses and our heads did never ache. For as the smoke in those days was supposed to be a sufficient hardning of the timber of the house, so it was reputed a far better medicine to keep the good man and his family from the quack or pose, wherewith then very few were acquainted.”

Chapter XVIII. “Our pewterers in time past employed the use of pewter only upon dishes and pots, and a few other trifles for service, whereas now there are grown into such exquisite cunning that they can in manner imitate by infusion any form or fashion of cup made by the goldsmiths’ craft. In some places beyond the sea a garnish of good flat pewter (I say flat, because dishes and platters in my time began to be made deep and like basins, and indeed were convenient both for sauce and keeping the meat warm) is almost esteemed so precious as the like number of vessels that are made of fine silver.”

The remains of ancient houses or other buildings which have survived the process of rebuilding in our town are very few, but there is one house at least, representing the houses of Elizabeth’s time which retains very much of its original character. This is the house known as the “South Flint House,” at the top of Wilde’s score which bears the initials W. M. and the date 1586 over the front door. The front of this house is built of square flints, much more expensive work than the alternate layers of cobbles and bricks with which the other walls were made. The ground floor appears to have originally consisted of one large room, with a fireplace and chimney in the centre, corresponding with that described by Holinshed as the hall where the “good-man” dined and dressed his meat (except that the fire was not against a “reredos” at the side wall). The two rooms above this are evidently much the same as they were at first, having each a stone fireplace with W. M. The house has been enlarged since with the addition of a wing.

PART II.—LOWESTOFT AND YARMOUTH AT THE END OF THE 16TH CENTURY.

Two hundred years had passed since the termination of the Parliamentary contest about the grant of Edward the III's. Charter. Lowestoft had not only established her right to exist, but was becoming an old town, and the events of the old contest had become matters of ancient history.

The Yarmouth bailiffs were still exercising their right to take tolls from ships loading or unloading in "Kirkley Road;" but the amount received from these tolls during a whole year, as entered in the Town Ledger, was very small, varying from a few pounds in one year to a few shillings in another. It seems that this demand had been confined to vessels trading in general merchandise, apart altogether from the claim to take tolls from fishing boats anchored off Lowestoft.

During these two hundred years Yarmouth had retained and even increased her trade, and had recovered her population, though her progress had been much retarded by the persistent action of the sea in blocking up her harbour.

The very existence of Yarmouth depended on her harbour. Her anomalous privilege of taking tolls from ships anchored in the North Sea could be no substitute for a harbour. This she knew well, and within two years of her obtaining her Charter, on the ground that her harbour was blocked up, she commenced opening another mouth.

Between 1393 and 1565 she had five times strained her resources to meet the expense of making new mouths, all of which had been blocked up; some almost immediately; one had been kept open for several years, but not without a constant expenditure of money and labour. At length in 1565 she undertook for the seventh time the work of making a new mouth. On this occasion, the assistance of a Dutch engineer was obtained, who knew how these things were done in Holland. Under his advice and superintendence a mouth was constructed, fortified by piles and stonework, and involving a much larger outlay than any of the previous works. The relief from taxes, and the reduction of her fee farm rent, which every King had granted from Richard II. to Elizabeth, was supplemented by special grants to assist the town in this undertaking. After some years of persevering effort, the work was completed and the existing Gorleston harbour was made. Ships could now freely enter her harbour and bring their cargoes to the "Crane Key." A revival of her trade followed, and the wealth of her merchants rapidly

increased. It was now that those houses were built along the Quay, the remains of many of which still survive to shew the grandeur of their original structure. One of the finest of these old houses is the venerable Star Hotel in which the room, called Nelson's room, retains its original character:—its richly carved oak pannelling, embossed ceiling, and large stone fireplace. But while her trade in general merchandise and in fish curing had increased, there had been no proportionate revival of her old fishing fleet. When Elizabeth was calling upon her subjects to supply ships to fight against the Spanish Armada, Yarmouth was joined with Lowestoft in a demand for one ship and one pinnace. The ship supplied was the "*Grace*" of Yarmouth, of 120 tons, and carrying 70 men. The "pinnace" was supplied by Lowestoft at the cost of £100. Such a contribution from Yarmouth was very different to that of the 43 ships and 1075 sailors, with which she supplied Edward the III. at the siege of Calais.

Meanwhile with the assistance of the Dutch and French fishermen the Free Fair at Yarmouth was going on as merrily as ever, and the Barons of the Cinque Ports still paid their annual visit to take part in its management. Even in the Armada year their visit was not withheld, as appears from the following amusing account of the termination of their journey, when coming to Yarmouth in the autumn of that year.

"The next day after we had dined at Layestoff, we took horse, and proceeded on the rest of our journey, and drawing towards Yarmouth Bridge, there attended our coming divers sorts of poor, lame and distressed people, who cried out for some relief, on whom we bestowed some pieces of money, and so riding over the Bridge about 2 o'clock in the afternoon we arrived sooner than our coming was expected. Notwithstanding there gathered and flocked together a great store of people, who very friendly bade us welcome; to whom we gave thanks and passed forward unto the town along the Quay, and there took our lodging, which had been provided for us at one Mr. Dameth's house, where we were very courteously entertained." ^[77]

At this time the Yarmouth bailiffs were possessed of an admiralty jurisdiction, with special powers for taking cognizance of offences committed in "Kirkley Road" or as it was now called "Lestoff Road" (as spelt in the town ledger of the period). At this time moreover (about 1595)

the mouth of the harbour was in a better condition than it ever had been, and the Yarmouth fish merchants had no longer any need to transgress the Statute of Herrings themselves by unloading their fish outside the harbour. It was under these circumstances that the Bailiffs determined to attempt a revival of the almost obsolete provisions of their ancient charter which prohibited the buying of Herrings in Kirkley Road.

It appears that for some years previously fish merchants from other towns in the Eastern counties had been in the habit of visiting these roads in the autumn season and filling their “Ketches” with herrings from the foreign fishing boats. It was against these men that the Yarmouth bailiffs now directed their attacks.

We hear of their proceedings from “The Complaint of the Ketchmen against Yarmouth” submitted to the Privy Council in 1595, signed by the bailiffs and inhabitants of Ipswich, Southwold, Manningtree, Dunwich, Colchester, and Aldborough.

It appears that the Yarmouth Bailiffs had not only sent their officers into the roads off Lowestoft to require the foreign fishermen to carry their fish into Yarmouth, but that they had taken active measures against the buyers, and had carried off “seven men’s goods which they have brought thither to be sold and have committed the owners thereof to prison and constrained them to buy their goods again.”

Lowestoft merchants were also warned to discontinue the illegal practice of buying fish in Kirkley Road. They at once joined in the petition of the Ketchman to the Privy Council, and a suit against Yarmouth was commenced in the Court of the Star chamber. The managers of the Lowestoft case retained the services of Mr. Counsellor Bacon, then a rising barrister, afterwards the great Lord Bacon. In conjunction with two senior counsel he gave the following very decided opinion in favour of Lowestoft;

“That by the statutes and charters aforesaid any man may sell or buy herrings in the road called Kirkley Road, without the lawful let or hindrance of the town of Yarmouth; and if any proclamation be made by the said men of Yarmouth, or any other of the subjects of this realm

to the contrary, the same, in our opinion, is unlawful, whether it be within or without this time of the Fair.”

Chas. Drew; Ja. Bargrave; Fr. Bacon.

The case was referred by the Star Chamber to the judges for their opinion on the questions of law involved. They at once cut the knot by deciding that the old statutes and charters were still in force, but that the “7 leuks” mentioned in them, could only mean 7 miles; the measure recently established by statute, and the only legal measure which the word “leuca” could then mean. Such a decision would at once settle the appeal in favour of Lowestoft. The Star Chamber however refused to accept this interpretation, and sent the case back to the Judges. The Judges adhered to their construction of the word “leuca,” but advised that question should be referred to Parliament for settlement. The decision of the Judges was convenient, but in holding that the word “leuca” in the old charters meant a “mile” as determined by the recent statute, they clearly ignored the whole purport and intention of the enactment against which Lowestoft had fought in the Parliaments of Edward and Richard. A Bill appears to have been prepared to be introduced into the following Session (1597) for giving Parliamentary sanction to this construction, and ordering that the distance of 7 miles should be measured along the shore from Yarmouth towards Lowestoft, and that a mark should be set up at the end of that distance. This Bill, although set out by Gillingwater, does not appear to have been passed. The result however, of these proceedings was that in pursuance of the advice of the judges, the distance was measured, and a pole set up at the end of the 7 miles on Gunton Denes. Although recognised by Lowestoft men as marking the boundary beyond which they might not land herrings, it was ignored altogether by Yarmouth; as it had not been placed in pursuance of any legal order. The Yarmouth bailiffs however abstained from any further assertion of their claims at this time, and the Lowestoft merchants and the Suffolk Ketchmen continued to carry on their dealings with the fishing boats in the Roads as before.

Why the Act of Parliament, advised by the judges, was not introduced, or, if introduced, was not passed, we are not told. Probably the influence of Yarmouth in the House of Commons was very different at this time from

what it was when the “Commons” supported Lowestoft against the Crown in the times of Edward and Richard.

The death of Elizabeth, and the succession of James I., gave Yarmouth an opportunity to procure a new charter from the Crown, which contained provisions for removing the doubts that had been raised as to the whereabouts and extent of Kirkley Road.

It contained a new grant of Kirkley Road, and actually revived the obsolete “leuca,” as a measure of 2 miles, so as to make the new grant include “Lestoff” Road, and the whole stretch of Roads, “from Winterton Ness to Easton Ness, containing in length 14 leuks or thereabouts, and in breadth into the sea 7 leuks from every part of the shore within those places.”

For this charter they undertook to pay the Crown an additional rent of £5 per annum. ^[80] Having thus repaired their armour they waited for a convenient occasion to renew the contest. But some 50 years or more were to pass, and another war was to be waged, before Yarmouth’s opportunity arrived for testing the strength of her new weapon.

LECTURE IV.

PART I.—IN THE TIME OF CHARLES I.

At the beginning of the 17th century the decay of our fisheries, and the consequent loss of sailors, on whose services the country depended for the protection of our shores, coupled with the warning which the Spaniards had given us, had caused a sense of national danger, which was realised by many besides ministers of the Crown. During his imprisonment of 13 years in the Tower of London, poor Sir Walter Raleigh wrote a pamphlet, which he presented to James I., in which he complained bitterly of our shame in allowing the Dutch and the French to get the command of our home fisheries. He says that

“While the English were sending their ships into the North Seas to catch whales, the Dutch were catching the herrings and codfish in our own seas; that in 1603 the Dutch fishermen sold £1,759,000 worth of herrings, and employed 2,000 busses and 50,000 men.”

Among other pamphlets written to rouse the nation and the government to take active measures for curing this evil, a powerful appeal appeared from an anonymous writer, entitled “England’s way to win wealth and to employ ships and manners. By Tobias, Gentleman, Fisherman and Mariner,” dated 1614. Speaking of the Dutch fishermen, he says—

“Also to Yarmouth do they daily (i.e. during the season), come into the haven up to the Key, all the most part of the great fleet of Hollanders, that go in sword-pinks, Holland toads, crab skuits, walnut shells, and great and small yeers, 100 and 200 sail at a time together, and all the herrings they do bring they sell for ready money to Yarmouth men; and also the Frenchmen of Picardy and Normandy some hundred sail of

them at a time, do come hither, and all the herrings they catch they do sell to the Yarmouth herring-mongers for ready gold.”

The writer gives the following account of the fisheries carried on by the Yarmouth merchants in their own boats.

“To this town belong some 20 Iceland Barks, which they do send for cod and ling, and some 150 sail of North Sea boats. They make a shift to live; but if they had the use of busses and also barrel fish they would excel all England and Holland; for they be the only fishermen for the North Seas, and also the best for the handling of fish that are in this land.”

He also gives an account of the trade as carried on at Lowestoft at this time, which you will be surprised to hear spoken of as a “decayed town.”

“To the north of Swold Haven (Southwold), three leagues are Kirkley and Layestof, decayed towns. They have 6 or 7 North Sea boats; but they of Layestof make benefit yearly of buying herrings of the Hollanders; for likewise these Hollanders are hosted with the Layestof men, as they are with the Yarmouthians.”

The government of Elizabeth had adopted various measures (with one of which you are already well acquainted) for encouraging the employment of English ships and sailors in the fishing trade, and the general commerce of the country. But the English could not successfully compete with the Dutch fishermen even off our own shores. Charles took stronger measures to get these fisheries into the hands of Englishmen. He determined to issue a prohibition against the subjects of foreign countries fishing in what he claimed to be British seas, without a license from the English government. In order to be able to enforce such an offensive measure he took steps for providing a more powerful navy than the country had ever before possessed. Unfortunately he had already quarreled with his Parliament, and he had to obtain the money required by demands authorised only by his Royal Prerogative. However popular the measure would have been, if it had been carried out by constitutional means, the imposition upon the whole country, without the consent of Parliament, of the tax called “ship money,” was the fatal proceeding which brought on the Civil War. He

succeeded however at first, and at once issued his prohibition which the Dutch refused to submit to, and in 1536, Hume tells us—

“A formidable fleet of 60 sail, the greatest that England had ever known, was equipped under the Earl of Northumberland who had orders to attack the Herring busses of the Dutch which fished in what was called the British seas.”

The effect of this attack upon the Dutch and French fishing in what was called the British seas was felt by Yarmouth and Lowestoft immediately. No more could their merchants rely upon their foreign visitors for their supply of herrings. If they were to retain their trade in herrings they must now catch them themselves or have their supplies limited to the produce of the English fishermen from southern ports.

LOWESTOFT IN THE CIVIL WAR.

Both towns had submitted, with the other maritime towns of Norfolk and Suffolk to the demands for ship money with which this fleet had been provided, but when the demand for more ships and more money was made in the following years, the loyalty of both towns must have been sorely tried.

The events which followed upon the King's renewal of his demand for ship-money throughout the kingdom, form the saddest chapters in the history of our country. We have only to notice those in which our two towns were concerned.

The Long Parliament met in 1640, and in 1642 Yarmouth declared herself for “the King and Parliament,” which meant that she was prepared to side with the Parliament against the King. Lowestoft took a different course. Although probably, like most other towns, and even families, at this terrible and critical period, our old townspeople were divided on the grave questions at issue, it appears that several of the leading persons in the town were so much inclined to the King's side, that instead of at once joining the East Anglian Association with the rest of the towns and parishes, and most of the landed gentry in the county, they entered into communication with some of the Cavalier party and offered Lowestoft as a rendezvous for the

King's friends. Such a course was perhaps only a natural sequel to the steps taken a few years before in applying to the King to exempt the town from contributing to the expenses of the county members, on the ground of being Ancient Demesne of the Crown. In the return of Sir Nathaniel Barnardiston and Sir Philip Parker, the Roundhead members for Suffolk, in the Long Parliament, Lowestoft had no part.

We have unfortunately no local records of the measures taken by our old townspeople, or by their cavalier visitors for converting the little town into a royalist stronghold; but it appears that in the early part of the year 1643, while Cromwell was at Cambridge, busy in establishing there the Headquarters of the East Anglian Association, he received information of "a great confederacy among the malignants of a town called Lowestoft, being a place of great consequence." It is said that the information was given him by a man who brought fish to Cambridge; doubtless a Yarmouth man. Cromwell, with his usual energy, started off at once to nip this "malignant" movement in the bud.

We have a full account of what took place from a letter written at the time by Mr. J. Cory, a Norwich man. Cromwell started with 5 troops of horse, which he increased at Norwich, with 80 volunteer dragoons, under Captain Fountain and Captain Rich, and arranged with the Yarmouth people to meet him at Lowestoft with an additional force of foot volunteers and 5 pieces of ordnance. With this formidable force he appeared at Lowestoft on the March. He found

"That the town had blocked themselves up, all except where they had placed their ordnance, which were three pieces, before which a chain was drawn to keep off the horse. The Colonel surrounded the town and demanded that they should give up the strangers, the town, and their army, promising them their favour, if so; if not, none. They yielded to deliver their strangers, but not the rest. Where upon our Norwich dragoons crept under the chain before mentioned, and came within pistol shot of the ordnance, preparing to fire upon their cannoneer, who fled. So they gained the two pieces of ordnance and broke the chain, and they and the horses entered the town without resistance; when presently eighteen strangers yielded themselves—Sir T. Barker, Sir John Pettus, of Norfolk, Mr. Knivett, of Ashwell Thorpe,

Mr. Richard Catelyn's son, some say his father too was there in the morning. Sir F. Cory, my unfortunate cousin, who I wish could have been better persuaded, Mr. Brooke, the sometime minister of Yarmouth, and some others escaped over the river. There was good stores of pistols and other arms; I bear above 50 cases of pistols. The Colonel stayed there Tuesday and Wednesday night. On Friday night the Colonel brought in hither (Norwich), his prisoners taken at Lowestoft and Mr. Trott of Beccles. On Saturday night, with one troop, he sent all the prisoners to Cambridge. Sir John Wentworth (of Somerleyton), has come off with the payment of £1000." ^[85]

We have a short account of these proceedings from the other side, from no less a personage than the Vicar himself, Mr. Jacob Rous, who had evidently taken an active part in the movement. He has left in the Parish Register, this note, dated 1646.

"Reader, whoever thou art, that shall have occasion to use this booke, know that by this means for these two following years it comes to be soe imperfect as thou find'st it. On the 14th March, 1643, Colonel Cromwell, with a brigade of horse and certain foote, which he had from Yarmouth, came to this towne and from thence carried away prisoners. Sir Thomas Barker and his brother, Sir John Pettis, Mr. Knivett, of Ashwell Thorpe, Mr. Catlin, Captain Hammond, Mr. Thomas Cory, with others to Cambridge, and with them, myself, Mr. Thomas Allen, Mr. Simon Canham and Thomas Canham, of this towne, so that for some time following, there was in this town neither minister nor clerke, but the inhabitants weare enforced to procure now one and then another to baptize their children, by which means there was no register kept, only those few hereafter mentioned wear by myselfe baptised in those intervalls when I enjoied my freedom."

We have in these extracts, I believe, the only original records of this exciting episode in the history of our old town. What became of the "army," which Cromwell had been led to suppose he would find at Lowestoft we are not informed. The accounts give the impression that the inhabitants of Lowestoft had taken very little part in the movement, and that the preparations were the work of the influential "strangers," with the

concurrence of the Vicar, the Parish Clerk, and a few other leading men. Mr. Mighells, one of the leading merchants of the time, had the credit of saving the little town from the fate in which the gallant cavaliers would have involved it, by appearing on the scene and dissuading resistance to Cromwell's entrance. After a stay of two nights at the Swan, and the capture of the "strangers" and the few "malignants" among the townspeople, Cromwell returned to Cambridge with his troop and left the little town in peace, without considering it necessary to leave any force to insure its future allegiance to the Parliamentary cause.

The story of this incident has naturally been considerably improved. In a petition to the judges, drawn up some 20 years afterwards, the proceedings of Cromwell and his soldiers were represented as "taking and plundering the town, imprisoning many of their principal inhabitants, and causing others to fly beyond the sea." The plundering seems to have been confined to the quartering of the soldiers for two nights without payment. Tradition only tells of one case, illustrative of any other plundering, viz.: that of the blacksmith, Frarey, who Mr. Suckling tells us—"was completely stripped of all his goods and obliged to keep his horse in the parlour of his house to prevent it being carried off by the soldiers." The "stripping of all his goods by the soldiers" consisted probably in their using his iron and tools to shoe their horses, without payment. Why, if bent on further plunder they did not take the trouble of looking into his parlour, the story does not explain. The "many of the principal inhabitants taken prisoners" were the four persons mentioned by Mr. Rouse. The others who "had to fly beyond the sea" were apparently a few of our sea warriors who had served in the King's navy, and who took advantage of the civil war to start a career of privateering from a Dutch port. We shall hear of their proceedings shortly.

HOSTILITIES BETWEEN YARMOUTH AND LOWESTOFT.

In 1642 the Yarmouth men had the luck to capture a ship sent over by the Queen with arms and ammunition for the King's army. After confiscating this ship in their Admiralty Court, with the approval of the Parliament, they fitted it out as a man of war, and in 1644 sent it out as a privateer on the side of the Parliament. They commenced hostilities by capturing a "pink" lying in the harbour, of which 'Captain Allen' was part owner. This was Mr. Thomas Allen of Lowestoft, who was then one of Cromwell's prisoners

at Cambridge, afterwards Admiral Allen and Sir Thomas Allen of Somerleyton. He had gone over to Yarmouth the day before Cromwell's visit to change dollars, and it appears that he was captured by some Yarmouth men and handed over to Cromwell. He was released after about two years detention, and in 1645 we find him engaged in active warfare for the King against Yarmouth. The Yarmouth men confined their claim against the pink to Captain Allen's share, which they sold to Mr. James Wylde, another Lowestoft man, but not a 'malignant,' for £35. We are told by Mr. Swinden that

“The Inhabitants of Yarmouth had already suffered very much by losses at sea, their ships, vessels, and goods being frequently taken and carried away by “rovers and pirates” at sea, and others in hostility against the Parliament, whereby the town was greatly impoverished.”

Out of the 23 Yarmouth ships sent to catch cod in Iceland in 1644, 20 were sunk by the “pirates.” To protect their fishermen, Yarmouth, in 1645, obtained three men of war from the Parliament. These ships captured several of the pirate ships, among the crew of which they found several Lowestoft men. These captures brought a letter from Ostend signed by Captain Allen and 11 other Englishmen, including two or three more Lowestoft names, threatening Yarmouth with reprisals if these men were not liberated. The hostilities carried on by these “Ostend pirates” against the Yarmouth fishing boats could not have much advanced the cause of the King. We do not, however, hear of any lives being taken in the encounters, but the loss inflicted upon the Yarmouth and other fishermen must have been very severe, if the following statement in Captain Allen's letter was anything more than bluster.

“Have we given you thousands of prisoners which we might have indungeoned, nay hanged, but that rebellious ignorance impleaded their escape. Now we can if you compel us make a hundred suffer for one.”

REMOVAL OF MEMORIAL BRASSES FROM THE CHURCH.

In 1644 our church suffered some illusage from the Protestant fervour of the Parliament. The story, as told by the Vicar, Mr. Jacob Rouse, is as follows

“In the same year after, on the 22nd of June, there came one Jessope with a commission from the Earl of Manchester to take away from gravestones all inscriptions on which he found “orate pro anima;” A wretched commissioner not able to read or find out that which his commission informed him to remove, hee took up in our church so much brasses as he sould to Mr. Josiah Wild for five shillings, which was afterwards contrary to my knowledge, run into the litle bell that hangs in the town house. Thear wearr taken up in the middle ally, twelve peeces, belonging to the twelve severall generations of the Jettors; in the chancell, one belonging to Bishop Scroope; the words were “Richardus Scroope Episcopus Dromorocensis et hujus ecclesiæ vicarius, hic jacet, qui obiit 10 may anno 1364.” There was also by this Jessop taken up in the vicar’s chancell, one the north side of the church, a fair peece of brasse with this inscription “Hic jacet Johannes Goodknapp hujus ecclesiæ vicarius qui obiit 4 Decembris anno dni 1442.”

The vicar’s spelling is bad for this time, and his account is curiously inaccurate. Bishop Scroope’s Christian name was Thomas, not Richard, and he died in 1491, not 1364. The Jettors were an old Lowestoft family, and we have seen their names in the Subsidy Rolls for 1524, in which John Jettor, senr., of that date, appears as possessed of £10 worth of “movabyll goods.” The existence of brasses in the Parish Church commemorating 12 generations of this family before 1644 was very improbable. No such name as John Goodknapp appears in the list of vicars in the Diocesan Register.

It appears that the “litle bell,” which was cast from the brasses taken from the church, was in use as the chapel bell in Gillingwater’s time at the end of the last century. It was re-cast when the chapel was converted into the Town Hall; in the tower of which it still hangs, and sounds the hours for the Town Clock.

Although both Yarmouth and Lowestoft must have suffered with the rest of the country from the restrictions on social and commercial intercourse during these sad times, the fishing business seems to have improved rather

than otherwise, owing to a diminution in the number of foreign competitors, and an increase in the exportation of fish.

There appears to have been a considerable increase in the number of ships sent from both towns to the cod fishery off Iceland, and to the herring fishery in the North Sea. During the years 1641 and 1649, the Yarmouth cod fishing reached its greatest height. The ships destroyed by the “pirates” in 1644 were soon replaced, and the accounts shew that no less than 33 barks were sent to the Iceland fishery in 1648, besides 182 boats employed in the herring fishery. According to Gillingwater, as many as 30 ships were employed by Lowestoft in the same fisheries at this one. If this was the case, the Lowestoft fishermen must have made a great advance since the days of Elizabeth, when we were told by Mr. Mighells that their ships going to Iceland had been reduced to one.

Gillingwater gives a full account of the cod fishery, as carried on by the Lowestoft fishermen, and tells us that in his time—

“There was a trench still visible upon the Denes, a little to the north of Lowestoft, in which stood the blubber coppers where they used to boil the livers of the fish when they returned home from the voyage.”

THE GREAT FIRE OF 1644.

It was in 1644, the year after Cromwell’s visit, that Lowestoft suffered the greatest calamity with which the town was ever afflicted, before or since. On the 10th March in that year, we are told, by Mr. Rous,—

“There happened in this towne a most violent and dreadful fire which consumed and burnt down soe many houses above and beneath the cliffe, as could not be rebuilt according to the judgement of knowing artificers who viewed it for above ten thousand pounds.”

It appears from the account of a survey of the losses incurred by the different owners, that the totals comprised £4,145 10. on dwelling houses, on fish-houses £3,085 0. 0. and on goods £3,066 12. 4. ^[90a]

The number of houses burnt was stated afterwards to have been 140. ^[90b]
According to a survey made in 1642 the yearly value of the houses and

tenements in the Parish was put at £412 6. 8., and the value of land at £447 11. 8., making a total of £859 18. 4. As the valuation of the houses and fish-houses burnt was £7,000, a sum which at as low a rate as 5 per cent would represent an annual value of £350, the property burnt would appear to have been much the larger part in value of all the houses and tenements in the town.

Considering how simple the construction of even the better class of houses was at this time, the value put upon the dwelling houses burnt, would seem to imply that they included many of the best houses on the cliff, where the owners of the fish-houses at the bottom resided: though the fire does not seem to have reached the house, which still exists at the top of Wilde's Score.

The losses of the owners on fish-houses ranged from £25 to £450. Mr. Josiah Wilde's loss was £400 on fish-houses. Doubtless this included the large fish-house at the bottom of Wilde's Score. Many of these fish-houses had probably been built in the early times of the Edwards and the Henrys. In a statement made some 20 years afterwards these fish-houses, then restored, are referred to as "monuments" proving the antiquity of the trades of the town.

In 1649 another valuation was made, in pursuance of an order of the Parliament. According to this valuation the value of property in the parish had been much reduced since 1641. The yearly value of all the lands and tenements in the parish was put then at £655. Doubtless this reduction was mainly due to the loss of property caused by the fire. But assuming that the value of the house property at this period was very small; and the annual value of land still less, it is impossible to reconcile these statements of the yearly value of the whole parish, with the valuation of the property destroyed by the fire. The explanation of the discrepancy would seem to be that the valuation of their property by our old townspeople to furnish a basis for taxation, was on a very different principle to that on which it was valued for the purpose of supporting a claim for exemption. Probably houses had no marketable or ascertainable value either for sale or letting at this time, and the estimate of either their capital or annual value would be of a very speculative character.

VALUE OF MOVEABLE GOODS.

The value of the “goods” lost by the fire is put at £3,066. This amount of property was owned by some 60 out of the three or four hundred householders which the town contained. The loss of Mr. Josiah Wilde was put at £280; the loss of Mr. Robert Bits at £370. As the small sum of £2 is given as the value of the goods lost by some of the smaller sufferers, we must regard the valuation of goods destroyed as sufficiently trustworthy to give an idea of the value of the stock in trade and furniture possessed by the merchants and tradesmen of the town at this period. A comparison of this valuation with the £790 returned as the value of the “movabyl goods” possessed by our townspeople in 1524, shews how largely the wealth of our merchants had increased since that time, notwithstanding the decay of their fisheries, and the other adverse circumstances against which they had been struggling, and how great had been the increase in the furniture and other commodities of life, which was noticed by Holinshed as commencing in Elizabeth’s time.

But even so the inhabitants generally must have been very poor and badly housed compared with the present day.

Putting 1,500 acres (nearly the whole acreage of the Parish) as the quantity of land valued in 1642 at £447. 11. 8. we have an annual value at that time of about 6 shillings an acre. The quantity of land in the Parish now rated as agricultural land is about 760 acres, and the rateable value £994 or about 28 shillings per acre; not 5 times its value in 1642.

Putting 400 as the number of houses having an aggregate value in 1642 of £412 we should have an average annual value of about £1 per house. The number of houses now in the parish (of course apart from Kirkley), is 4,867 and the rateable value £77,680, giving an average value of about £16 per house, or 16 times that of 1642. This very great increase of value represents in the main the difference in the character of the dwellings in which our ancestors lived, and of those required by an advanced civilization. Writing in 1790 Gillingwater gives the following description of the town at that time:—

“Lowestoft is about a mile in length, and consists chiefly of one principal street, running in a gradual descent from north to south, which is intersected by several smaller streets or lanes from the west. It is well paved, particularly High street, and consists of about 445 houses, exclusive of fish-houses, which are chiefly built of brick. Several of the houses have been lately rebuilt in the modern style, and make a handsome appearance. *It is probable that the town consists of much the same number of houses now as it had many years ago; there being very few houses erected upon new foundations, but only rebuilt upon the old ones. Lowestoft contains about 2,231 inhabitants.*” [\[92\]](#)

PART II.—IN THE TIME OF CHARLES II.

THIRD AND LAST CONTEST WITH YARMOUTH ABOUT THEIR CHARTER.— CONCLUSION.

It was while our merchants were suffering from their losses caused by the great fire, that the Yarmouth people made a third effort to enforce the privileges of their ancient charters now confirmed and strengthened by the charter of James I. It appears that for some years before 1659, they had sent boats into the roads off Lowestoft to exact harbour dues from fishing boats, but in this year they took a much stronger measure. They had in their harbour a large ship, probably the Queen’s ship which we have before heard of as used for war-like purposes. They fitted out this ship as a “man of war” and sent her to ride in the roads off Lowestoft. The ship was formally “commissioned” by the Yarmouth bailiffs under the command of Thomas Allen, a namesake of the Lowestoft champion, to prevent the Western fishermen and other strangers selling their fish to the Lowestoft merchants in the roads; with power to seize their ships, etc. The “man of war” was sufficiently formidable to terrorise the strangers, but not the Lowestoft men, who having well armed themselves for the encounter, went out in their boats to attack it. According to the statement of the Yarmouth bailiffs—

“The chief men of the said town came upon the said Thomas Allen and his company in the road of the said town, violently and riotously in boats, and with force of arms, etc., drave him and them out of the road, threatening them otherwise to fire their vessel. Whereby the said

Thomas Allen with his vessel and company was forced to come away without doing anything.” ^[93]

In consequence of this vigorous action on the part of the Lowestoft men the ship was sent again sufficiently armed to resist any second attack, and

“With a flag on the maintop-roast head, having 25 men on board, armed with swords, half-pikes, muskets, and a great store of stones, the ship sails into the roads of Corton, Lowestoft and Kirkley, during the chiefest part of the season, daily chasing the fishermen so that none durst deliver any herrings.” ^[94a]

According to a statement in a petition of the inhabitants of Lowestoft to the House of Lords, ^[94b] the effect of these very high-handed proceedings on the part of the Yarmouth bailiffs was that the Lowestoft merchants were deprived of “at least a thousand lasts of herrings,” which they would otherwise have purchased from their visitors during the season. This was probably an exaggeration, but it was evident that unless this assertion of their privileges by the Yarmouth bailiffs was at once resisted, the herring-trade of Lowestoft would be annihilated at a time when its merchants had been rebuilding and enlarging their fish-houses with a view to an increase of their fish-curing trade. It was stated that at this time they had capacity in their fish-houses for “hanging” 700 lasts of herrings. This number of lasts were “hung” in the Lowestoft curing houses in 1674, ^[94c] a larger number than could be hung at one time in our present curing houses. But the number of herrings cured in the town would only be part of the quantity passing through the merchant’s hands—then and now.

LOWESTOFT APPEALS TO THE KING AGAINST YARMOUTH.

Impoverished as the merchants were by their losses from the fire, and the expense of rebuilding their houses and fish-houses, they bravely determined to resist the pretensions of Yarmouth by another appeal to the governing powers of the country, and at once took steps to gain the support and co-operation of other towns interested in the herring trade.

Meanwhile events had been taking place of much more importance to the country than the quarrel between Lowestoft and Yarmouth. The

Cromwellian rule had come to an end, and a King again sat on the throne of England. Yarmouth had lost the claim to the favour of the crown which her ancestors had enjoyed in the days of the Edwards. She must secure the favour of the new King by other means. Before his landing, the Burgesses had met and determined that it was “a convenient season” to send an address to their King with the offer of a little pecuniary assistance. In August, 1660, they submitted a most loyal address to their “dread sovereign” congratulating him upon his being restored to his rights and possessions, etc., and acknowledging in all humility their obligation to pay the old fee-farm rent (which they had already paid to Cromwell by composition), and tendering him £266 13. 4. in cash for arrears. In the following December they sent him a further present of £500. ^[95]

The Lowestoft people had no reason to doubt the good will of Charles, and they commenced their suit by a petition to the King himself complaining of the conduct of the Yarmouth bailiffs, and supporting it by numerous petitions to the House of Lords, the Judges, the Fishmonger’s Company, and many great men of the day. This Petition to the King was very favourably received, as appears from the following reply from His Majesty, dated 17th October, 1660, at the court of Whitehall,

“The situation of the town of Lowestoft being very well known unto His Majesty, who is much dissatisfied with the proceedings of the town of Yarmouth, mentioned in the petition of the said town of Lowestoft, he is graciously pleased to refer the consideration of the said petition to the Right Honourable the Lords of His Majesty’s most Honourable the Privy Council, to give such orders for the relief and satisfaction of the said petitioners as they in their great wisdom shall think meet.”

Signed ROBERT MASON.

The Lowestoft people were so pleased with the King’s expression of sympathy with their cause, that they submitted a second petition to him asking him to preside in person at the hearing of the case, and “to put an end to all differences according to the rights and justice of their cause.”

The King did attend the hearing of the case, but he did not gratify the expectations of our old townspeople by deciding it in their favour at once.

The case was heard by the Privy Council on several days before the King, the Duke of York, and many great officers of state and noblemen. As when the case was brought before the Star Chamber in Elizabeth's time, the Privy Council attempted to get the matter settled by referring it to the law authorities. But these learned persons found themselves equally unable to settle the dispute on legal grounds, and it was accordingly referred to the House of Lords. After the suit had been for upwards of two years under discussion by these various authorities, the House of Lords gave their decision, which was simply a repetition of the decision of the judges in Elizabeth's time, but it was supplemented by an order to the Sheriffs of Norfolk and Suffolk, to measure the distance of seven miles from the "Crane Key" at Yarmouth, along the shore towards Lowestoft, and to place there a new post to mark the limits, "within which the Bailiffs and Corporation of Yarmouth are to enjoy their full privileges and immunities, as the said statute of the 31st, Edward III., and their charter do afford them, and no further."

PROCEEDINGS AT YARMOUTH ABOUT THE MEASUREMENT OF THE SEVEN MILES.

The 27th of May 1662, was agreed upon by the Sheriffs for making the measurement in pursuance of the order of the House of Lords, and at 9 o'clock in the morning of the appointed day, a number of Suffolk gentlemen, including seven Justices of the Peace, living near Lowestoft, and accompanied by the Under Sheriff of Suffolk, appeared at Yarmouth. Neither the Sheriff of Norfolk, Sir Richard Bacon, nor the Under Sheriff, Mr. Roger Smith, of Norwich, had arrived; but at 11 o'clock Mr. Roger Smith put in an appearance, and excused the absence of the High Sheriff on the ground that he was at his house about 30 miles away, and not in health.

A long altercation then took place between the Suffolk gentlemen and the Under Sheriff of Norfolk. Mr. Roger Smith took the bold course of denying that the House of Lords had "the power to take away another man's rights," and professed to be quite unable to satisfy himself at what point the measurement should commence, etc. At length having firmly maintained

his position till dinner, he left the Suffolk gentlemen and dined with the Bailiffs.

Having waited till Mr. Smith had finished his dinner, the Suffolk gentlemen again requested him to join in the measurement, but now he was not only obdurate but returned “unhandsome answers.” Accordingly at the request of the Lowestoft men, the Suffolk Justices and the Under Sheriff engaged two surveyors and undertook to make the measurement without him. They commenced at the “Crane Key” about 4 o’clock in the afternoon “pursued by multitudes with much insolence and disturbance.” They rode along the shore under the cliff watching the surveyors laying their chain and completed their task about half an hour before sunset. Having marked the place for the new post, a few yards nearer Yarmouth than that of the “ancient” post, (that put up in Elizabeth’s time) they went on to Lowestoft and stayed there for the night.

The following day was spent in great rejoicing at Lowestoft. The High Sheriff of Suffolk had now joined the party, and they were entertained by the town at the Swan Hotel.

A post was soon afterwards set up at the spot fixed upon, but the Yarmouth men acting on the advice of Mr. Roger Smith, refused to recognise it, and the Lowestoft men had again to appeal to the Lords to enforce their order. In the following April the House of Lords issued their warrant to their Sergeant-at-Arms to take into custody Roger Smith, the Under Sheriff of Norfolk and ordered that the measurement should be executed again by the two sheriffs. This was done, without further interruption, on the 10th June following, and another post fixed.

Mr. Roger Smith having been detained in custody for about a fortnight petitioned to be released on the ground that as long as he was in prison the King’s taxes could not be collected. He was brought to the Bar of the House of Lords and ordered to make instant submission upon his knees at the bar of that house, before their lordships, in the words following.—

“I do humbly beg your Lordships’ pardon, and express very hearty sorrow for not executing your Lordships’ order, and for any unadvised words uttered by me, which might have any reflection on your

Lordships' judgement and order concerning the matter in difference between the towns of Lowestoft and Yarmouth."

It was further ordered that he should make the same humble submission before the people on the "Crane Key" at Yarmouth. On these conditions he was released. Doubtless both acts of penance were duly performed.

Although the ghost of the old charter was not finally laid by the result of the contest, it was the last time that the expensive process of an appeal to the Crown, or to Parliament, was resorted to for settling the disputes which it gave rise to between the two towns. The expenses of this protracted suit, defrayed by Lowestoft, amounted to £600, not a very large sum compared with modern experiences.

In order to prevent the question being again raised by Yarmouth as to the distance to which their privileges extended, when Charles II. gave the town a new charter in 1684, a special proviso was inserted in it—

"That the word leuca mentioned in divers former charters signifies an English mile and no more, as declared by the House of Lords in the 15th year of our reign." ^[99]

Thus the town was compelled to accept a construction of the provisions of their old charter which excluded Lowestoft from the area of their application.

"CORTON POLE."

The spot where the 7 miles, measured from the Crane Quay at Yarmouth, was found to terminate, was in Gunton Denes about 150 yards this side of the Corton boundary. The post set up in 1663 was washed down a few years afterwards. It had been placed too near the sea, which at that period was advancing on the land at this part of the coast; and in 1676 another post was fixed, a few yards further inland, in the presence of a number of leading men representing the counties of Norfolk and Suffolk. This post has been also replaced more than once since, but it is still represented by the post known as the "Corton Pole." The present post, and one or two of its predecessors, have been used by the Corton Coast Guard for practising their

life saving apparatus, and its interesting connection with the history of our old town is not generally known. Old men however still remember this post being known as a boundary mark beyond which Lowestoft people might not land fish. As Gillingwater does not mention any further replacing of the post before he wrote his history, it may be inferred that the post set up in 1676 was standing in his time. From what I have learnt as to the replacing of the posts in later years by the Coast Guard, it would appear that the present post is nearly in the same position as the posts of 1676, and 1596.

EFFECT OF THE SUCCESSFUL TERMINATION OF THE SUIT.

The success of our old townspeople in their contest with Yarmouth appears to have had the effect of reviving their energies, and encouraged them to take active measures for improving their hold on the herring trade, and increasing the number of ships employed by themselves in the fishery.

But at this time the trade appears to have been again in a depressed state owing to the Dutch war. According to a statement in their petition to Parliament in 1670, one half of the fishing adventurers of the town had given up the business and their fishermen were lamentably impoverished.

Our old town was however now in good favour with the government. Several of its seamen were doing good service in the Kings' navy against the Dutch, and they had a good friend in Parliament in the old royalist Sir John Pettus, who had been one of the "strangers" captured by Cromwell in Lowestoft some 30 years before. They employed him to present petitions to Parliament on behalf of their own and the fishermen of other Suffolk towns.

One of these proposals was that "fishing beer" should be exempted from the excise duty. In connection with this proposal a return was made of the number of fishing boats employed by Lowestoft and the neighbouring Suffolk fishing villages. From this return it appears that at this time Lowestoft sent out 25 boats, Pakefield and Kirkley 14, Southwold 11, Aldborough 5, Corton 2, and Dunwich 1.

The consumption of beer by the crews of these 58 boats was estimated at 9 tuns per boat, amounting altogether to 522 tuns. It is probable that in these days a liberal supply of beer, which was very cheap, compensated for a deficiency in good food. Since the invention of tea, coffee and cocoa, beer is happily no longer necessary on board a fishing boat and has long since ceased to form part of the provisions carried by Lowestoft boats.

In 1679 we find our old townspeople taking steps for advancing the general mercantile trade of town, by petitioning the Treasury to allow their merchants to export corn, and import coal. ^[101] This was not granted, nor can we see how, without a harbour, the ambitious project of engaging in such trades could be entertained. Leave was however given for the exportation of butter, cheese, and fish and for the importation of all materials requisite for building and furnishing ships.

It was stated in this Petition that the town had then increased its shipping to the number of 60 vessels—a rapid advance on the 25 ships possessed 9 years before. As we are told by Gillingwater that the number of boats employed at Lowestoft in the herring fishery during the years 1722–1781, averaged about 33, there could have been no further advance in the fishing business until quite recent years. It is evident that our old townspeople had been bestirring themselves, and were making good use of the opportunity which the absence of Dutch busses from this side of the North Sea now offered.

With such evidence of a revival of life and energy in our old Town, and the promise of further growth and commercial development in the future, (a promise since so happily realised), we may close our sketch of Lowestoft in olden times.

It has given us glimpses of our old townspeople during four centuries of a chequered career during which they established and maintained their position with very little help from natural advantages or local circumstances. Without a harbour they were unable to make any material advance in either wealth or population. But small as the old town was it was able to contribute largely to the manning of the fleets which fought for England against the Dutch and other powers during the latter part of the 17th and the beginning of the 18th century, and to claim as her own sons many of the brave seamen who added to the glory of the national flag during those wars. A short notice of these Lowestoft heroes will be a fitting conclusion to our sketch. A full account of their exploits is to be found in Gillingwater.

You are already acquainted with Mr. Thomas Allen, one of Cromwell's prisoners in 1643. He belonged to an old Lowestoft family. In the navy of Charles II. he held many high commands, and as an Admiral, took a prominent part in some of the fierce conflicts of the First Dutch War. In 1669 he retired from active service and was created a Baronet. Having acquired a handsome fortune, by opportunities not given to our sea warriors of the present day, he bought the Somerleyton Estate and resided in the old Hall for several years.

Admiral Utber and his son, Captain Utber, were also Lowestoft men who served with Admiral Allen in the Dutch Wars, and performed many distinguished services.

Sir John Ashby was another gallant seaman belonging to an old Lowestoft family. He was much distinguished for his services both as Captain and Admiral in the wars against France, in the time of William III. He was in command as Admiral of the Blue at the celebrated battle of La Hogue.

Another Lowestoft man, Sir Andrew Leake, was distinguished for his services in the war against France and Spain, in the early part of the reign of Queen Ann. He took part in the Capture of Gibraltar in 1704, and afterwards in the great battle off Malaga in the same year, in which he lost his life. (He must not be confused with his namesake, Sir John Leake, the hero of the siege.)

Another distinguished seaman was Admiral Mighells. He belonged to a well-known Lowestoft family, which had held a leading position in the town for more than a hundred years. The name has been mentioned more than once in these lectures. He was distinguished for his services in the war against Spain in 1719.

The last of our naval heroes, whose early career associated him with those already mentioned, was Captain Thomas Arnold. He earned great distinction in an action against the Spanish Fleet when serving under Admiral George Byng in 1718. He belonged to a family which had held a high position in the town for more than century, and which still holds the same position amongst us. The prestige of this family has been since enhanced by the celebrity of others of its members—the great educational Reformer, Dr. Arnold, Head Master of Rugby School, and his son, Matthew Arnold, one of the most distinguished of the poets and essayists of the Victorian Era.

FOOTNOTES.

[3] “Ramsay’s Physical Geology and Geography of Great Britain,” and “Woodward’s Geology of England and Wales.”

[10] Camden’s *Britannia*, p. 381. “For it is possible that the steepness of the hill, and a morass below next the river might be thought a sufficient security on that side.” Sir H. Spelman in his *Icenia*, speaks of Burgh “as a place surrounded with morass and narrow passes.”

[13] Exhibited at this Lecture.

[14] This is a corrected *Erratum*.—Was “at Lothu Wistoft (Lowestoft) and a beruita (or subordinate manor) in Gernemutha (Yarmouth)” and corrected to: read “at Gernemutha (Yarmouth) and a beruita (or subordinate manor) in Lothu Wistoft (Lowestoft).”

[17] Two lasts and two barrels. The value of salt herrings at this time was probably about 30s. a last, or £4 10s. of our present money. In 1295 fresh herrings sold at Yarmouth for 37s. a last. Swinden p. 922. Several salt works, (*salinæ*) are mentioned in Domesday at Caister and other places. The art of curing herrings by hanging and smoking them was apparently not practised until some two centuries after the conquest.

[21] Turner’s *History of the Anglo Saxons*.

[31] See Swinden p. 924.

[32] Swinden p. 94.

[33] Swinden, p. 300. Palmer, p. 43.

[39] Swinden p. 221.

[57] Built before 1553 by one “Katharine Mayde” Suckling’s Suffolk, Vol. II. pt. 5. p. 37.

[66] Froude, Vol. 8, p. 434.

[67a] Then.

[67b] The right thing.

[67c] Michaelmas.

[67d] Pigs ears, &c.

[67e] Ember-days.

[70] See below, p. 74.

[72] Not including the plague year, 1603, when the enormous number of deaths would give very misleading evidence of population.

[77] Palmer’s Perlustration of Great Yarmouth vol. III. 252.

[80] Swinden, p. 708.

[85] Carlyle’s Letters of Oliver Cromwell 109.

[90a] Gillingwater p. 31.

[90b] p. 78.

[92] Gill. p. 27

[93] Gill. 87.

[94a] Gill p. 86.

[94b] Gill. p. 100.

[94c] Gill. 1st Edition, p. 243

[95] Swinden, p. 475.

[99] Swinden, p. 334.

[\[101\]](#) Gill., p. 50.

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